ABBREVIATIONS AND WHO'S WHO

Trucking runs on initials. Every agency, form, and number has a short name, and everyone in the industry uses the short name as though you were born knowing it. This page is here so you never have to guess. Flip back to it any time.

A THE AGENCIES AND THE SYSTEMS

- **FMCSA — FEDERAL MOTOR CARRIER SAFETY ADMINISTRATION**
  The agency inside the U.S. Department of Transportation that regulates trucking. It issues your operating authority, runs the safety rules, and audits new carriers. Most of this guide is about satisfying FMCSA.

- **DOT — DEPARTMENT OF TRANSPORTATION**
  The parent department. "DOT physical" and "DOT number" are everyday shorthand, though the number is properly a USDOT number and the physical is run under FMCSA's medical rules.

- **USDOT NUMBER — UNITED STATES DEPARTMENT OF TRANSPORTATION NUMBER**
  Your carrier's federal identifying number. It follows the company, not the truck, and it is what enforcement looks you up by.

- **MC NUMBER — MOTOR CARRIER NUMBER**
  The operating authority number, issued when you are granted authority to haul for hire across state lines. Separate from the USDOT number, and not everyone needs one.

- **IRS — INTERNAL REVENUE SERVICE**
  Federal tax agency. Issues your EIN and collects the heavy vehicle use tax on Form 2290.

- **SOS — SECRETARY OF STATE**
  The state office that registers business entities in most states. Where your LLC or corporation is formed and where its annual report is filed.

- **DMV — DEPARTMENT OF MOTOR VEHICLES**
  Generic name for the state licensing agency. Yours may be called something else entirely — Motor Vehicle Division, Driver Services, Department of Revenue.

- **SAFER — SAFETY AND FITNESS ELECTRONIC RECORDS**
  FMCSA's public lookup system. Anyone — including a broker deciding whether to give you a load — can pull your carrier record here.

- **CSA — COMPLIANCE, SAFETY, ACCOUNTABILITY**
  FMCSA's safety enforcement programme. It scores carriers using roadside inspection and crash data, and the score affects who will work with you.

- **PRISM — PERFORMANCE AND REGISTRATION INFORMATION SYSTEMS MANAGEMENT**
  The programme that links your safety record to your vehicle registration, so a state can block plates over federal safety problems.

- **CDLIS — COMMERCIAL DRIVER'S LICENSE INFORMATION SYSTEM**
  The national record system states use to check that a driver holds a commercial licence in one state only. Medical certification now flows through it.

B LICENCES, DRIVERS, AND TRAINING

- **CDL — COMMERCIAL DRIVER'S LICENSE**
  The licence required to drive a heavy commercial vehicle. Issued by your state under federal standards. Covered in Part Two.

- **CLP — COMMERCIAL LEARNER'S PERMIT**
  The permit that lets you practise in a real commercial vehicle with a licensed holder beside you. A precondition to being issued a CDL.

- **ELDT — ENTRY-LEVEL DRIVER TRAINING**
  The federally required training you must complete before you can take the skills test. Not the same thing as an ELD, despite the similar initials.

- **TPR — TRAINING PROVIDER REGISTRY**
  FMCSA's list of schools approved to deliver that training. Training from anyone not on this list does not count.

- **BTW — BEHIND-THE-WHEEL**
  The practical half of driver training, as opposed to theory. Split between a closed range and public roads.

- **DQ FILE — DRIVER QUALIFICATION FILE**
  The file you must keep on every driver, including yourself, proving they are legally qualified to drive. Covered in Part Ten.

- **MVR — MOTOR VEHICLE RECORD**
  A driver's official driving history, requested from the state that licensed them. Required at hire and once every twelve months after.

- **SPE CERTIFICATE — SKILL PERFORMANCE EVALUATION CERTIFICATE**
  A federal certificate allowing a driver with certain physical limitations to drive after demonstrating they can do it safely.

- **SDLA — STATE DRIVER LICENSING AGENCY**
  The formal federal term for whichever state office issues your licence.

C VEHICLES AND WEIGHT

- **CMV — COMMERCIAL MOTOR VEHICLE**
  The federal term for a vehicle the safety rules apply to. Whether your truck is one is a weight and use question, not a matter of opinion. Part One works it out.

- **GVWR — GROSS VEHICLE WEIGHT RATING**
  The maximum a single vehicle is rated to weigh, loaded. Set by the manufacturer and stamped on the vehicle — not something you calculate or estimate.

- **GCWR — GROSS COMBINATION WEIGHT RATING**
  The same idea for a truck and trailer together. This is the number that decides whether you need a Class A licence.

- **VIN — VEHICLE IDENTIFICATION NUMBER**
  The unique number identifying a specific vehicle. Needed for registration, for insurance, and on Form 2290.

- **DVIR — DRIVER VEHICLE INSPECTION REPORT**
  The daily written inspection record a driver completes on the vehicle.

D REGISTRATIONS, TAXES, AND FILINGS

- **EIN — EMPLOYER IDENTIFICATION NUMBER**
  Your business's federal tax number. Free from the IRS. Needed before almost anything else can be filed.

- **SSN AND ITIN — SOCIAL SECURITY NUMBER, INDIVIDUAL TAXPAYER IDENTIFICATION NUMBER**
  Personal tax numbers. One of them identifies the responsible party on your EIN application.

- **UCR — UNIFIED CARRIER REGISTRATION**
  An annual fee based on how many vehicles you run, paid through a single national portal.

- **IRP — INTERNATIONAL REGISTRATION PLAN**
  The agreement that lets one set of plates cover multiple states, with fees apportioned by the miles you run in each. "Apportioned plates" means IRP plates.

- **IFTA — INTERNATIONAL FUEL TAX AGREEMENT**
  The matching agreement for fuel tax. You file one quarterly return and the states settle between themselves.

- **HVUT — HEAVY VEHICLE USE TAX**
  The federal annual tax on heavy trucks, paid to the IRS on Form 2290. Covered in Part Eight.

- **BOC-3 — THE PROCESS AGENT FILING**
  The form naming someone in each state who can accept legal papers on your behalf. Required before authority is granted, and you cannot file it yourself.

- **MCS-150 — MOTOR CARRIER IDENTIFICATION REPORT**
  The form that creates and updates your USDOT registration.

- **FR — FINANCIAL RESPONSIBILITY**
  The federal term for proof that you carry the required insurance. "FR filings" are the insurance forms your insurer sends to FMCSA.

- **MCS-90 AND BMC-91 — INSURANCE ENDORSEMENT AND FILING**
  The MCS-90 is an endorsement attached to your policy guaranteeing payment to the public. The BMC-91 is the form your insurer files with FMCSA proving coverage exists.

E OPERATING, LOGGING, AND TESTING

- **HOS — HOURS OF SERVICE**
  The federal limits on how long a driver may work and drive. Covered in Part Eleven.

- **ELD — ELECTRONIC LOGGING DEVICE**
  The device that records driving time automatically by connecting to the engine. It replaced paper logs for most carriers.

- **RODS — RECORD OF DUTY STATUS**
  The formal name for a driver's log — the record of when they were driving, on duty, or off.

- **CLEARINGHOUSE — FMCSA DRUG AND ALCOHOL CLEARINGHOUSE**
  The federal database of drug and alcohol testing violations for commercial drivers. Covered in Part Nine.

- **MRO — MEDICAL REVIEW OFFICER**
  The licensed physician who reviews drug test results before they are reported, and who contacts a driver about a positive.

- **SAP — SUBSTANCE ABUSE PROFESSIONAL**
  The specialist who evaluates a driver after a violation and sets what they must complete before returning to duty.

- **C/TPA — CONSORTIUM / THIRD-PARTY ADMINISTRATOR**
  A company that runs your drug and alcohol testing programme for you. Useful, but hiring one does not transfer your legal liability.

- **AIR MILE — A STRAIGHT-LINE NAUTICAL MILE**
  Not a road mile. A 150 air-mile radius is about 172.6 statute miles measured straight out from your base, ignoring the roads. This matters for the short-haul exception.

F HOW TO READ A CITATION

Federal rules are cited in a fixed format. Once you can read it, you can look up any rule in this guide yourself and confirm it for free.

49 CFR 395.3(A)(2)

PIECE	WHAT IT MEANS
49	**Title 49 — the transportation title of federal regulation**
CFR	**Code of Federal Regulations — the body of rules agencies write**
395	**Part 395 — hours of service of drivers**
.3	**Section 3 within that part**
(a)(2)	**The specific paragraph inside that section**

Read any rule in this guide free at **ecfr.gov**, the government's official current text. Not a summary site, not a vendor's page — the regulation itself. If something you are told anywhere contradicts what you read there, the regulation wins.

DECIDE WHAT YOU'RE OPERATING

Before the entity. Before the DOT number. Before the truck. Five facts about your operation decide which federal rules land on you — and getting them wrong means buying the wrong truck.

1.1 WHY THIS COMES FIRST

- **TRUCK LAST — NOT FIRST**
  People buy the deal they found, then learn it needs a license they don't have.
- **WEIGHT + OPERATION TYPE — DECIDE EVERYTHING DOWNSTREAM**
  Insurance minimums, commercial driver's license (CDL) requirement, tax filings, and audit scope all key to these two facts.
- **RATINGS ARE NOT A GUESS — THEY ARE STAMPED ON THE TRUCK**
  The numbers are riveted inside your driver's door frame. Go read them.
- **5 FACTS — WEIGHT, TRAILER, STATE LINES, WHOSE FREIGHT, WHAT'S IN THE BOX**
  Settle these five and every later step tells you what it needs.

1.2 THREE NUMBERS

GVWR

GROSS VEHICLE WEIGHT RATING

Max the manufacturer says one vehicle may weigh loaded — truck, fuel, driver, cargo. A rating, not a measurement. Doesn't drop when you're empty.

GCWR

GROSS COMBINATION WEIGHT RATING

Same idea for truck plus trailer together. On the door plate or in the manufacturer's specs for your exact configuration.

Actual

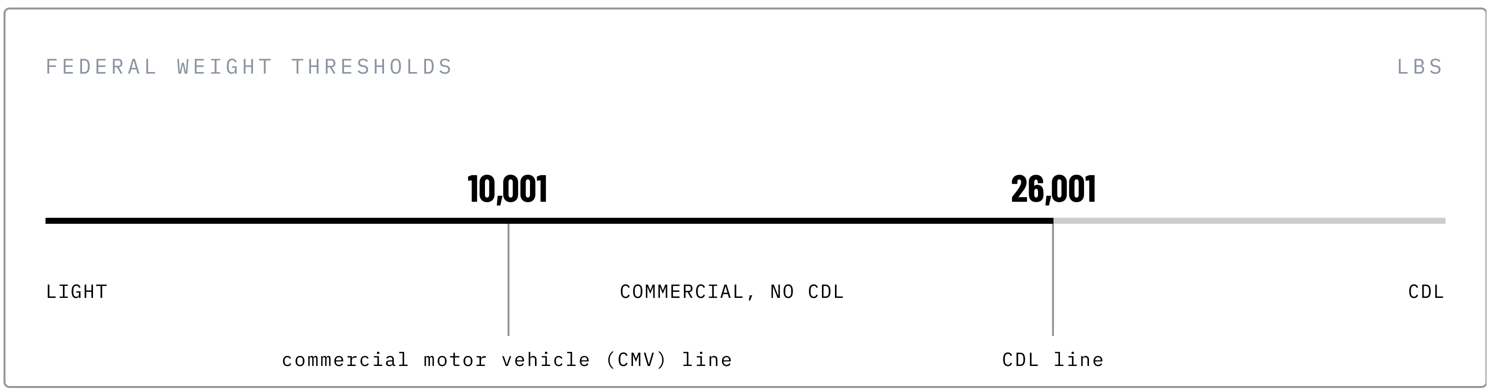
WEIGHT ON THE SCALE

What it truly weighs right now, loaded. Matters more than first-timers expect — see the trap in 1.4.

WHERE TO FIND IT

Certification label riveted inside the driver's door jamb. Open the door, look at the frame edge. If the label is missing or unreadable, the manufacturer can supply the rating from the vehicle identification number (VIN).

1.3 THE TWO LINES THAT MATTER



- **GVWR OR GCWR AT OR ABOVE 10,001 LBS — DRIVER QUALIFICATION FILES, HOURS OF SERVICE, INSPECTION RECORDS, DRUG & ALCOHOL TESTING ALL APPLY**
  In interstate commerce for business at that weight, you are a commercial motor vehicle and the full safety framework lands on you.

- **BELOW 10,001 LBS, NON-HAZARDOUS — FEDERAL INSURANCE MINIMUMS DO NOT APPLY**
  Most of the framework lifts, including 49 CFR 387.9. This is the cargo van and Sprinter lane. Read the trap below before you celebrate.

- **AT OR ABOVE 26,001 LBS — CDL TERRITORY, CLASS DEPENDS ON THE TRAILER**
  Which license you need turns on whether the towed unit is rated over 10,000 lbs.

TRAP — THE LIGHT-VEHICLE "EXEMPTION"

Federal exemption from a minimum is not permission to run bare. The government hasn't set your floor — the market has.

Brokers and shippers routinely require $1,000,000 auto liability before tendering any load, in any vehicle. State vehicle insurance requirements still apply. One serious at-fault accident uninsured ends the business and likely everything else you own.

1.4 DO YOU NEED A CDL?

The vehicle groups are set at 49 CFR 383.91. Translated out of regulation-speak:

- **SINGLE TRUCK, 26,000 OR LESS, NO HAZMAT — NO CDL FEDERALLY**
  You still need everything else. The license is the only thing you skip.
- **SINGLE VEHICLE 26,001+ — CLASS B**
  Stays Class B even when towing, as long as the towed unit is rated 10,000 or less.
- **COMBINATION 26,001+ AND TRAILER OVER 10,000 — CLASS A**
  Both conditions must be true. The trailer rating is what separates A from B.
- **PLACARDED HAZMAT OR 16+ PASSENGERS — CLASS C**
  Applies at any size when it fits neither Group A nor Group B.

Hotshot

PICKUP PULLING A TRAILER

A heavy-duty pickup, usually a one-ton dually, pulling a flatbed trailer. Smaller and cheaper to start than a tractor-trailer, and the most common first rig for someone entering on their own money.

Gooseneck

TRAILER HITCHED OVER THE AXLE

A trailer that couples to a ball mounted in the pickup bed, over the rear axle, instead of at the bumper. It carries more weight than a bumper-pull and adds axles — which is what pulls a hotshot into rules a box truck escapes.

Power unit

THE THING WITH THE ENGINE

The truck itself, counted separately from any trailer. Fee brackets, registration, and audits are counted in power units, so one truck pulling three trailers is still one power unit.

Dry van

ENCLOSED BOX TRAILER

The plain enclosed trailer most freight moves in. Named to distinguish it from a reefer, which is refrigerated, and a flatbed, which is open.

CLASS LOOKUP — REAL CONFIGURATIONS

Find the row closest to your rig. Ratings from the door plate.

SETUP	TRUCK	TRAILER	COMBINED	VERDICT
Cargo van / Sprinter	9,000	–	**9,000**	NOT A CMV
16-ft box truck	25,999	–	**25,999**	CMV, NO CDL
26-ft box truck	26,000	–	**26,000**	CMV, NO CDL
Box truck, heavier spec	33,000	–	**33,000**	CLASS B
Box truck + small trailer	26,000	9,000	**35,000**	CMV, NO CDL
Hotshot, light trailer	14,000	10,000	**24,000**	CMV, NO CDL
Hotshot, gooseneck	14,000	14,000	**28,000**	CLASS A
Dually + 40-ft gooseneck	11,400	16,000	**27,400**	CLASS A
Tractor + dry van	52,000	34,000	**86,000**	CLASS A
Any size, placarded hazmat	any	any	**any**	CDL + H

Two rows are worth staring at. **Box truck + small trailer** is a 35,000-lb combination with no CDL required, because the truck is under 26,001 and the trailer is rated 10,000 or less — neither Group A nor Group B is triggered. **Hotshot, light trailer** is the same trick on a pickup. Add 500 lbs of trailer rating to either and it becomes a Class A vehicle.

TRAP — RATING IS NOT A SAFE HARBOR

49 CFR 383.5 defines these thresholds as the weight *rating* or the *actual weight, whichever is greater.*

A rig plated at 25,999 that crosses a scale at 26,400 loaded has, in that moment, put an unlicensed driver in a CDL vehicle. Officers write this. Plan loads against the number, not the sticker.

1.5 THE TWO ENTRY LANES

Both exist because of the 26,001 line. Most first-timers are choosing between them.

BOX TRUCK

STRAIGHT TRUCK, NO CDL

Typical GVWR	25,995–26,000
CDL required	No
Is a CMV	Yes
Insurance floor	$750,000

UNDER 26,001 — YOU SKIP THE LICENSE AND NOTHING ELSE

Most 16-ft and many 24-ft models sit at 25,995 or 26,000 deliberately. DOT number, safety rules, hours of service, drug testing and the insurance minimum all still land on you.

HOTSHOT

PICKUP + GOOSENECK

Trigger	Combination
Trailer test	>10,000
Common error	The math
Insurance floor	$750,000

TWO PLATES ADDED TOGETHER — NOT THE SIZE OF THE PICKUP

```
14,000 truck
+ 14,000 trailer
= 28,000 combination
trailer > 10,000 → CLASS A CDL
```

SAY IT PLAINLY

Skipping the CDL does not skip the business. Cross a state line for hire in a commercial motor vehicle and you still need a United States Department of Transportation (USDOT) number, operating authority, a DOT medical certificate, a drug and alcohol testing program, and a passing New Entrant Safety Audit. Non-CDL is a licensing status, not a regulatory exemption.

1.6 INTERSTATE OR INTRASTATE

INTERSTATE

YOU CROSS A STATE LINE — FULL FEDERAL FRAMEWORK
Every part of this guide applies to you.

FREIGHT MOVES BETWEEN STATES — STILL INTERSTATE, EVEN IF YOU DON'T
Your leg can start and end at home and still count.

PORT OR RAIL-YARD LOAD FROM ELSEWHERE — COUNTS
This catches people who believe they run purely local.

INTRASTATE

STARTS AND ENDS IN ONE STATE — YOUR STATE GOVERNS
Never part of a larger interstate movement.

RULES VARY ENORMOUSLY — CHECK YOUR OWN STATE
Some run their own authority systems and fees; some mirror the federal rules.

FEDERAL SAFETY RULES CAN STILL REACH YOU — MOST STATES ADOPT THEM
Assume the framework applies until your state says otherwise.

FOR-HIRE

YOU HAUL OTHER PEOPLE'S FREIGHT FOR PAY — YOU NEED OPERATING AUTHORITY
That is the MC number, applied for separately from the USDOT number.

AUTHORITY ACTIVATES ONLY AFTER INSURANCE IS FILED — NOT WHEN GRANTED ON PAPER
Your insurer files the proof with Federal Motor Carrier Safety Administration (FMCSA). Covered in Part Seven.

PRIVATE

YOU HAUL YOUR OWN COMPANY'S GOODS — USUALLY NO MC NUMBER
The freight belongs to a business you already operate.

STILL A USDOT NUMBER, STILL THE SAFETY RULES — NO EXEMPTION
Driver files, hours of service, testing, and inspections all apply.

1.7 ANSWER FIVE, THEN MOVE ON

Everything in Parts Two through Fourteen keys off these. Tap each as you settle it.

- [ ] Single vehicle, or truck-and-trailer combination?
- [ ] Vehicle GVWR and combination GCWR, read off the door plate?

- [ ] Trailer GVWR, if you're running one?
- [ ] Interstate or intrastate?
- [ ] For-hire or private?

> IF YOU CAN'T ANSWER 2 AND 3
>
> That means you haven't bought the truck yet — which is exactly the right place to be standing. Finish the guide first.

`49 CFR 383.5` `49 CFR 383.91` `49 CFR 387.9` `49 CFR Part 390`

GETTING YOUR CDL
FROM PERMIT TO LICENCE

Part One told you whether you need one. This part is the route. Federal law sets the floor, your state issues the card, and there is a training requirement in the middle that did not exist a few years ago and that catches almost everybody who last looked into this before 2022.

2.1 WHERE THE RULES COME FROM

Two federal parts govern this, and your state licensing agency applies both. Nothing your state does can go below either one.

49 CFR 383
CDL STANDARDS

Sets the classes, the endorsements, the knowledge and skills tests, the learner's permit rules, and the offences that disqualify you.

49 CFR 380
ENTRY-LEVEL DRIVER TRAINING

Subpart F. Sets the training you must complete before you are allowed to take the skills test at all.

YOUR STATE
ISSUES THE LICENCE

Runs the testing, charges the fees, and holds the record. There is no federal commercial driver's license (CDL) office and no federal CDL card.

ONE STATE, AND ONE ONLY

You apply in your state of domicile — where you actually live. You may hold a commercial licence from one state only. Holding two is a serious violation and it is visible, because every CDL is recorded in a national system that states query against each other.

2.2 THE ROUTE, START TO FINISH

1 CONFIRM WHICH CLASS YOU NEED

Class A for a combination over 26,000 pounds where the trailer alone is over 10,000. Class B for a single heavy vehicle. Part One covers this against your actual equipment. Get it wrong here and you train for the wrong licence.

2 PASS THE DOT PHYSICAL AND GET YOUR MEDICAL CERTIFICATE

From an examiner on the National Registry. Most states want this on file before or at the time you apply. Part Nine covers the exam and the certificate in full.

3 PASS THE KNOWLEDGE TESTS AND GET YOUR COMMERCIAL LEARNER'S PERMIT

General knowledge, plus a test for each endorsement you want. The permit is a separate document from your licence, and it is a precondition — you cannot be issued a CDL without first holding one.

4 COMPLETE ENTRY-LEVEL DRIVER TRAINING

From a provider listed on Federal Motor Carrier Safety Administration (FMCSA)'s Training Provider Registry. Theory and behind-the-wheel. The provider reports your completion to FMCSA electronically; FMCSA passes it to your state.

5 TAKE THE SKILLS TEST

Three parts: vehicle inspection, basic control, and road driving. In a vehicle representing the class you are testing for. Your state schedules it, or licenses a third party to.

6

SELF-CERTIFY YOUR TYPE OF OPERATION AND COLLECT THE LICENCE

You declare which category of driving you do. Interstate non-excepted is the category that requires your medical certificate to stay current on the record.

2.3 THE COMMERCIAL LEARNER'S PERMIT

49 CFR 383.25. The permit is what lets you legally practise in a real truck on real roads.

- **ACCOMPANIED AT ALL TIMES — FRONT SEAT, NEXT TO YOU**
  A holder of a valid CDL with the right class and endorsements must be physically present in the front seat beside you, with you under observation and direct supervision. Not following in another vehicle. Not on the phone.

- **YOU MUST BE 18 — AND HOLD A REGULAR LICENCE FROM THE SAME STATE**
  The permit is only valid carried together with a valid driver's licence issued by the same jurisdiction that issued the permit.

- **GENERAL KNOWLEDGE TEST FIRST — PLUS EACH ENDORSEMENT**
  A permit holder with a passenger endorsement must have passed the passenger knowledge test, and so on for each one.

- **NO HAZARDOUS MATERIALS — UNDER ANY CIRCUMSTANCES**
  A permit holder may not operate a vehicle transporting hazardous materials as defined in 383.5. A tank endorsement on a permit only allows an empty, purged tank.

- **14 DAYS BEFORE YOU CAN TEST — COUNTED FROM INITIAL ISSUANCE**
  You are not eligible to take the skills test in the first 14 days after the permit is first issued.

THE 180-DAY FIGURE IS OUT OF DATE

Almost every article and truck-school page still says the permit is good for 180 days, renewable for another 180. The current regulation says something different: the permit is valid for no more than **one year** from the date it was first issued without you having to retake the knowledge tests, and a permit issued for a shorter period may be renewed so long as the total does not pass one year.

States may still issue for shorter periods, so check what your state actually prints on the card. But do not plan around 180 days as though it were the federal ceiling.

WATCH THIS ONE

FMCSA has proposed removing the 14-day waiting period entirely, as part of a broader CDL flexibility rulemaking. As of this writing it is still in force. If you are timing a permit against a training start date, confirm the current rule with your state before you count on the delay.

2.4 ENTRY-LEVEL DRIVER TRAINING

49 CFR 380 Subpart F. Effective February 7, 2022. This is the requirement people miss, and it is a hard gate — you will not be scheduled for a skills test without it.

WHO HAS TO COMPLETE IT

- **FIRST-TIME CLASS A OR CLASS B APPLICANTS**
  Before taking the skills test.
- **ANYONE UPGRADING CLASS B TO CLASS A**
  Holding a CDL already does not excuse the upgrade.
- **FIRST-TIME PASSENGER OR SCHOOL BUS ENDORSEMENT**
  Before the skills test for that endorsement.
- **FIRST-TIME HAZMAT ENDORSEMENT**
  Before the knowledge test — not the skills test.

WHO DOES NOT

- **ANYONE LICENSED BEFORE FEBRUARY 7, 2022**
  The rules are not retroactive for the class or endorsement already held.
- **PERMITS ISSUED BEFORE THAT DATE**
  If the permit was obtained before February 7, 2022 and the CDL is obtained before it expires.
- **ANYONE EXCEPTED FROM THE CDL RULES ENTIRELY**
  Under 49 CFR 383.3, and certain military drivers under 383.77.

CHECK THE REGISTRY BEFORE YOU PAY ANYBODY

Training only counts if the provider is listed on FMCSA's Training Provider Registry at **tpr.fmcsa.dot.gov**. The registry is searchable by state and by the type of training offered. A school that is not listed cannot certify you, and money spent there buys you nothing toward the licence.

You cannot submit your own completion. Only a registered provider can report it, using their assigned registry ID number. If a school tells you to file something yourself, that is a sign to stop.

WHAT THE TRAINING CONSISTS OF

Two components, both required, both defined federally.

COMPONENT	WHAT IT IS
Theory	**Knowledge instruction — lectures, demonstrations, audio-visual, simulation, o**
Behind-the-wheel, range	**Manoeuvres on a closed area free of obstructions and other traffic**
Behind-the-wheel, public road	**Driving on public roads under an instructor**

There is no federal minimum number of hours. The standard is proficiency: you must demonstrate it, and the provider must certify it. Schools advertising "160-hour programs" are describing their own curriculum, or a state requirement, not a federal one. That is why programme lengths and prices vary so much between schools in the same city.

2.5 THE TESTS

KNOWLEDGE

WRITTEN, BEFORE THE PERMIT

General knowledge for the class you want, plus a separate test for each endorsement. Passing these is what gets you the learner's permit.

SKILLS

THREE PARTS, ALL IN ONE DAY

Vehicle inspection, basic vehicle control, and on-road driving. Failing any one part usually means retesting that part, but state retest policies and waiting periods differ.

THIRD PARTY

NOT THE DMV

States may authorise third-party testers to administer skills tests. These are often faster to book than a state site. The state audits them, and the licence issued is identical.

TEST IN THE TRUCK YOU INTEND TO DRIVE

You are licensed for what you test in. Take the skills test in an automatic and you get an automatic-only restriction printed on the licence, which closes off a large share of available equipment. The same logic applies to testing without a trailer on a Class A.

2.6 WHAT CAN STOP YOU

- **DISQUALIFYING OFFENCES — 49 CFR 383.51**
  Some convictions carry a set disqualification period whether or not you were in a commercial vehicle at the time. Driving under the influence and refusing a test are the ones that most often surprise applicants, because a conviction in your personal car still counts.
- **MEDICAL DISQUALIFICATION — UNDER PART 391 SUBPART E**
  Vision, hearing, blood pressure, and certain conditions are examined against a federal standard. Some disqualifications can be worked around with an exemption or a skill performance evaluation certificate. Part Nine covers this.
- **AN UNRESOLVED DRUG AND ALCOHOL RECORD — THE CLEARINGHOUSE**
  A prohibited status in the FMCSA Clearinghouse blocks you from operating a commercial vehicle and, in most states, from holding the licence. Part Eight covers how that record is created and cleared.
- **AGE — 21 FOR INTERSTATE**
  18 is enough for the permit and for intrastate driving in many states. Interstate is 21 under 391.11. If you are between those ages, you are limited to within your own state.

2.7 WHO TO CONTACT

FMCSA Training Provider Registry
Sitetpr.fmcsa.dot.gov

Use it toFind registered schools near you and confirm one is currently listed before paying
Ask a school"What is your Training Provider Registry ID number?"
Your state licensing agency
AskWhere skills testing is done, whether third-party testers are authorised, and the current wait
AskThe permit validity period your state issues, and its fees for permit, tests, and licence
AskWhether the state adds requirements beyond the federal minimum

`49 CFR 380 Subpart F` `49 CFR 380 Subpart G` `49 CFR 383.25` `49 CFR 383.51` `49 CFR 383.71` `49 CFR 383.91`

2.8 BEFORE YOU MOVE ON

Confirmed which class of CDL your intended equipment actually requires

Confirmed whether entry-level driver training applies to you, or whether you are covered by a pre-2022 exception

Searched the Training Provider Registry and confirmed your chosen school is listed

Asked the school for its registry ID number and what its price includes

Scheduled the DOT physical with an examiner on the National Registry

Checked your own driving record for anything disqualifying under 383.51

Confirmed your state's permit validity period and its fee schedule

Decided whether to test in a manual, so you avoid the automatic restriction

FORM THE BUSINESS, GET YOUR EMPLOYER IDENTIFICATION NUMBER (EIN)

A state filing that costs less than a tank of fuel, and a federal tax ID that costs nothing at all. Do these in the right order and every step that follows lines up. Do them backwards and you will be amending federal records for a month.

3.1 ORDER OF OPERATIONS

You cannot register a trucking company with the federal government until there is a company to register. Obvious — and yet this is the most common sequencing error first-timers make.

DO IT IN THIS ORDER 2.1

1. **FORM THE ENTITY**
   State filing. The LLC becomes the legal owner of everything that follows.
2. **GET THE EIN**
   Free from the Internal Revenue Service (IRS), issued in minutes, in the entity's name.
3. **OPEN THE BUSINESS BANK ACCOUNT**
   Requires the first two. Nothing financial happens before this exists.
4. **THEN MOTUS — AND ONLY THEN**
   United States Department of Transportation (USDOT) number and authority applied for in the entity's exact legal name.

WHAT GOING BACKWARDS COSTS YOU

Federal registration in your personal name, truck title and policy in another — amended records, re-filed insurance, sometimes a restarted authority application.

- **ONE LEGAL NAME ACROSS EVERYTHING — REGISTRATION, INSURANCE, TITLE, BANK, BROKER PACKET**
  Brokers verify it, insurers underwrite against it, Federal Motor Carrier Safety Administration (FMCSA) cross-references it. A mismatch stalls all three.
- **THE ENTITY IS YOUR LIABILITY WALL — NOT PAPERWORK FOR ITS OWN SAKE**
  The realistic worst case in trucking is not a lost load. It is an injury claim that exceeds your policy limits, and what stands between that claim and your house is this filing.

3.2 WHICH STRUCTURE

SOLE PROP

DEFAULT IF YOU FILE NOTHING

No separation between you and the business. Every business debt is your personal debt; every judgment reaches your personal assets. It costs nothing because it is not something you create — it is something you fail to avoid.

OPERATING HEAVY MACHINERY IN PUBLIC — UNACCEPTABLE EXPOSURE

LLC

WHAT MOST SMALL CARRIERS USE

A separate legal person that owns the truck, holds the authority, signs contracts, and absorbs liability. Cheap to form, light annual paperwork, and taxed by default like a sole proprietorship — profit flows to your personal return with no separate business income tax.

NO STRONG REASON TO DO OTHERWISE — FORM AN LLC

S CORP

A TAX ELECTION, NOT A STRUCTURE

An LLC or corporation elects it on IRS Form 2553. Can cut self-employment tax once profit is consistently substantial, by splitting income between salary and distributions. Costs real payroll administration, a separate business return, and an accountant.

YEAR TWO OR THREE — NOT MONTH ONE

C CORP

DOUBLE TAXATION

Profits taxed at the company level, then again as dividends when they reach you. Built for businesses raising outside investment and retaining earnings at scale, which is not what a one-truck carrier is doing.

NO OFFSETTING BENEFIT AT THIS SIZE — SKIP IT

GROWTH NOTE

THE ENTITY YOU FORM NOW IS THE ENTITY YOU WILL STILL USE AT THREE TRUCKS

Most carriers who intended to stay at one truck did not. Adding a second truck, hiring a driver, or bringing on someone who runs loads for a percentage requires no re-forming — you add the vehicle to the policy, add the driver to your qualification files and testing pool, and update your vehicle count with FMCSA. Name the company accordingly.

3.3 THE NAME

- **MUST BE AVAILABLE AND DISTINGUISHABLE — SEARCH THE STATE DATABASE FIRST**
  Every Secretary of State runs a free searchable business register. Search before you get attached.
- **MUST CARRY THE DESIGNATOR — "LLC," "L.L.C." OR "LIMITED LIABILITY COMPANY"**
  The state rejects a filing that omits whichever form it permits.
- **DON'T NAME IT AFTER ONE TRUCK, ONE LANE, OR YOURSELF — IT TELLS BROKERS HOW SMALL YOU ARE**
  Neutral, slightly institutional names buy credibility you have not earned yet and survive the pivot from box truck to hotshot to dry van without a new filing.
- **CHECK THE DOMAIN AT THE SAME TIME — BEFORE YOU FILE, NOT AFTER**
  Changing the legal name later means a state amendment and an FMCSA record update.
- **WANT A DIFFERENT PUBLIC NAME? — THAT'S A TRADE NAME, FILED SEPARATELY**
  Also called a DBA or assumed name. In Colorado the Trade Name Statement is $20 online.

3.4 REGISTERED AGENT

WHAT IT IS

A PERSON OR COMPANY AT A PHYSICAL IN-STATE ADDRESS — NO PO BOXES
Every state requires one. It is where legal service of process and official state mail land.

SHOULD IT BE YOU

LEGAL IN EVERY STATE — BUT A POOR FIT FOR A DRIVER
Your job is being three states away. The agent's job is being at one address all day.

YOUR ADDRESS BECOMES PUBLIC RECORD — SEARCHABLE BY ANYONE
If you work from home, that is your home address on a public database.

MUST BE AVAILABLE DURING BUSINESS HOURS — THAT IS THE WHOLE JOB
Someone has to be there to physically receive documents.

MISSED SERVICE = DEFAULT JUDGMENT — YOU LOSE WITHOUT KNOWING YOU WERE SUED
Commercial services run roughly $100–$200 a year and remove the risk entirely. One of the better small expenditures available.

3.5 FILING THE ARTICLES

The document is the **Articles of Organization** for an LLC — Articles of Incorporation for a corporation. Filed with your state's Secretary of State or equivalent, almost always online.

WHAT THE FORM ASKS FOR 2.5

1. **ENTITY NAME**
   Including the required designator.
2. **PRINCIPAL OFFICE ADDRESS**
   Often public record. Check whether your state accepts a mailing address if you work from home.
3. **REGISTERED AGENT NAME, ADDRESS, CONSENT**
   Most states require the agent's affirmative consent on the filing.
4. **MANAGEMENT STRUCTURE**
   Member-managed or manager-managed. A solo owner-operator is member-managed.
5. **PERSON FORMING THE ENTITY**
   And in some states, the members.
6. **EFFECTIVE DATE**
   Immediate, or delayed — a January 1 start gives you clean books for year one.

WORKED EXAMPLE — COLORADO

Colorado Secretary of State, fee schedule revised July 1, 2024

FILING	FEE	WHEN
Articles of Organization (LLC)	**$50**	Once, online only
Periodic Report	**$25**	Every year
Periodic Report, late	**$50**	Penalty if you miss it
Reinstatement after delinquency	**$100**	If it lapses too long
Trade Name Statement (DBA)	**$20**	Optional
Certificate of Good Standing	**Free**	Online, any time

1700 Broadway, Suite 550, Denver, CO 80290 · 303-894-2200 · coloradosos.gov
Fees change without notice — verify current amounts on the Secretary of State's own fee schedule before filing. Colorado appears here as a worked example; your state edition of this guide carries yours.

TRAP — LOOKALIKE FILING SITES

THE STATE'S OWN FEE IS THE WHOLE FEE

An entire industry charges $200 to submit the same $50 form you can submit yourself in fifteen minutes. Some buy search advertising to appear *above* the real agency. Confirm you are on a **.gov** address before entering anything. Search your state's name plus "Secretary of State business filing" and check the domain.

TRAP — FORMING IN WYOMING OR DELAWARE

YOUR BASE STATE IS WHERE THE TRUCKS ARE

Operating authority, International Registration Plan (IRP) registration, and your International Fuel Tax Agreement (IFTA) license all tie to the state where your vehicles are based and your records are kept. Forming elsewhere generally means registering as a foreign entity in your real home state anyway — two sets of fees for one business. Form where you live and operate.

BEFORE YOU ASSUME $50 IS THE WHOLE PICTURE

A handful of states add meaningful ongoing costs: annual franchise taxes, newspaper publication requirements, or gross receipts fees. Check your state's before budgeting.

3.6 THE EIN

A nine-digit number the IRS assigns your business, formatted 12-3456789. It is the business's Social Security number.

- **IT IS FREE — IT HAS ALWAYS BEEN FREE**
  The IRS states plainly that applicants in the U.S. and its territories get an EIN at no charge on IRS.gov. Sites charging to "obtain" one are billing you for typing.

- **APPLY ONLINE AT IRS.GOV — ISSUED IMMEDIATELY ON COMPLETION**
  The online application is the electronic Form SS-4. Finish in one sitting; the session expires on inactivity and does not save.

- **SAVE THE CONFIRMATION NOTICE THE SECOND IT APPEARS — PRINT IT AND STORE A COPY**
  Replacing it later is a phone call and a wait. You will be asked for it by the bank, insurers, brokers, and factoring companies.

- **RESPONSIBLE PARTY MUST BE A HUMAN BEING — NOT YOUR LLC, NOT A TRUST**
  The IRS wants the individual who controls the entity and the disposition of its funds and assets, with their SSN or Individual Taxpayer Identification Number (ITIN). For a solo owner-operator, that is you.

- **CONTROL CHANGES LATER? — REPORT IT ON FORM 8822-B**
  The IRS asks for that within 60 days of the change.

- **NO SSN OR ITIN? — THE ONLINE TOOL IS CLOSED TO YOU, USE FAX OR MAIL**
  Submit Form SS-4 by fax: 855-215-1627 from inside the United States, 304-707-9471 from outside it. Phone assistance is available on the IRS business line — check current hours on IRS.gov.

- **NEVER APPLY TWICE — ONE BUSINESS, ONE NUMBER**
  You do not need a new EIN because the name changed or you elected different tax treatment on Form 8832. Duplicate EINs create years of correspondence.

3.7 BANK ACCOUNT AND OPERATING AGREEMENT

THE ACCOUNT

THE OPERATING AGREEMENT

OPEN IT BEFORE ANY MONEY MOVES — RIGHT AFTER THE EIN
Bring the filed Articles, the EIN notice, your operating agreement, and personal ID.

MIXING ACCOUNTS DESTROYS THE PROTECTION YOU JUST PAID FOR — "PIERCING THE CORPORATE VEIL"
Courts unwind LLC protection when an owner treats the business account as a personal wallet. Fuel, insurance, repairs, permits and payments go out of the business account; revenue comes in.

PAY YOURSELF DELIBERATELY — A RECORDED OWNER'S DRAW, NOT A SWIPE
Transfer a set amount from business to personal and log it.

GET A BUSINESS CARD — FUEL IS YOUR LARGEST VARIABLE EXPENSE
Separated, categorized, and building business credit from load one.

RARELY REQUIRED — WRITE ONE ANYWAY
Who owns what, who can bind the company, how profits are distributed, what happens if a member leaves or dies, how it dissolves.

FOR A SOLO LLC ITS JOB IS EVIDENTIARY — PROOF THE COMPANY IS REAL
That is precisely the question a plaintiff's lawyer will raise. Banks and lenders ask for it too.

DRIVER-FOR-A-PERCENTAGE DEALS GO HERE — IN WRITING, BEFORE IT BECOMES A DISPUTE
The most common small-fleet arrangement is also the most commonly undocumented.

NO GOVERNMENT TEMPLATE EXISTS — THIS ONE POLICYREADY BUILDS FOR YOU
Where the law says a document must exist without saying what it looks like, that is our lane.

3.8 COMMON MISTAKES

- **REGISTERING WITH FMCSA BEFORE THE ENTITY EXISTS — MISMATCHED FEDERAL AND LEGAL RECORDS**
  Amended filings, re-filed insurance, sometimes a restarted application.
- **PAYING A THIRD PARTY FOR A FREE EIN — $200 FOR TEN MINUTES OF TYPING**
  The IRS issues it at no charge.
- **NAMING A COMPANY AS RESPONSIBLE PARTY — THE IRS REJECTS IT**
  It must be an individual with an SSN or ITIN.
- **BEING YOUR OWN AGENT WHILE OVER THE ROAD — MISSED SERVICE OF PROCESS**
  Default judgments happen to people who were never home to be served.
- **FORMING OUT OF STATE FOR A DRIVEWAY BUSINESS — TWO SETS OF FEES**
  You register as a foreign entity at home anyway.
- **ELECTING S CORP IN MONTH ONE — PAYROLL COST ON ZERO PROFIT**
  At low profit levels it frequently costs more than it saves.

- **ONE ACCOUNT FOR EVERYTHING — DISSOLVING IN PRACTICE WHAT YOU FORMED ON PAPER**
  The single most reliable way to lose your liability protection in court.
- **FORGETTING THE ANNUAL REPORT — OUT OF GOOD STANDING AT THE WORST MOMENT**
  Brokers and factoring companies ask for a certificate of good standing. Put the date on a calendar today.

3.9 BEFORE PART FOUR

- [ ] Name searched and confirmed available in your state
- [ ] Structure chosen — LLC unless a professional advised otherwise
- [ ] Registered agent designated, consent on file
- [ ] Articles of Organization filed, stamped copy saved
- [ ] Annual report due date written on a calendar
- [ ] EIN obtained free from IRS.gov, notice saved in two places
- [ ] Business bank account open, funded, separate
- [ ] Operating agreement drafted and signed

ALL EIGHT DONE

YOU NOW HAVE A LEGAL ENTITY, A FEDERAL TAX ID, AND CLEAN BOOKS

That is everything Motus will ask you to name in Part Four. Have the Articles and the EIN notice in front of you when you start.

`IRS Form SS-4 (Rev. 12-2025)` `IRS Form 8822-B` `IRS Form 2553` `IRS Form 8832` `CO SOS fee schedule 07-01-2024`

YOUR USDOT NUMBER AND AUTHORITY

This is the step where your business becomes visible to the federal government. It happens in Motus, a system that replaced everything Federal Motor Carrier Safety Administration (FMCSA) used before it on May 14, 2026 — which means most of the advice online about how to do this is now describing a system that no longer exists.

4.1 WHAT MOTUS IS

- **MOTUS IS FMCSA'S REGISTRATION FRONT DOOR — MOTUS.DOT.GOV**
  A single secure dashboard where you register with FMCSA, manage those registrations, and control who else has access. FMCSA describes it as mobile-friendly, and it is — you can complete this on a phone.
- **LIVE SINCE MAY 14, 2026 — THE LEGACY SYSTEMS YIELDED TO IT THAT DAY**
  FMCSA announced it in a Federal Register Notice published April 29, 2026. Any walkthrough written before that date describes a system that is gone.
- **ONE ACCOUNT COVERS EVERYTHING — UNITED STATES DEPARTMENT OF TRANSPORTATION (USDOT) NUMBER, OPERATING AUTHORITY, ADDITIONAL AUTHORITIES**
  Carriers, brokers, freight forwarders, intermodal equipment providers and cargo tank facilities all register here. So do the supporting companies you will deal with later — BOC-3 blanket filers and insurance filers.
- **NO PAPER, AT ALL — SINCE SEPTEMBER 30, 2025**
  FMCSA stopped accepting paper transactions. If someone hands you a paper form to mail in for this step, it is not going anywhere.

MOTUS IS NOT AN ACRONYM — IT IS A LATIN WORD

Stop looking for what the letters stand for. They do not stand for anything.

WHY THIS MATTERS TO YOU SPECIFICALLY

THE SYSTEM IS FOUR MONTHS OLD

Every filing service, every YouTube walkthrough, and every forum post older than mid-2026 is describing the old flow. That is genuinely confusing for a first-timer — and it is also why services feel worth paying. They are not. The current process is described below.

4.2 HAVE THIS IN FRONT OF YOU

Gather everything before you open the site. The application asks for all of it, and hunting for a document mid-form is how mistakes get typed in.

BEFORE YOU LOG IN 3.2

1. **FILED ARTICLES OF ORGANIZATION**
   The exact legal name, spelled exactly as the state has it. Not close. Exact.
2. **EMPLOYER IDENTIFICATION NUMBER (EIN) CONFIRMATION NOTICE**
   From Part Three. You will type the number and it must match Internal Revenue Service (IRS) records.
3. **GOVERNMENT-ISSUED PHOTO ID**
   Driver's license or passport, for identity verification. Have the physical card, not a photo of it.
4. **BUSINESS ADDRESS AND PHONE**
   Principal place of business — where your records are kept. A mailing address can differ; the principal address should be real.
5. **VEHICLE AND DRIVER COUNTS**
   Owned, leased, and driver totals. Estimates are fine and can be updated later, but they shape how FMCSA classifies your operation.
6. **CARGO CLASSIFICATIONS YOU INTEND TO HAUL**
   General freight, refrigerated, building materials and so on. Check what you realistically will carry.

7 **A PAYMENT METHOD IN THE BUSINESS NAME**
Credit card, debit card, or ACH from the business account you opened in Part Three.

4.3 IDENTITY VERIFICATION

- **YOU MUST PROVE YOU ARE A REAL PERSON — BEFORE YOU CAN REGISTER A COMPANY**
  FMCSA requires new registrants to pass an identity proofing and verification check. This is a fraud-control measure, and it is not optional.
- **FMCSA PARTNERED WITH IDEMIA — FOR DOCUMENT CAPTURE AND VERIFICATION**
  You will photograph your ID and, typically, yourself. Good lighting, no glare, flat surface, all four corners of the card in frame.
- **THE USER PROFILE IS A PERSON — THE COMPANY ACCOUNT IS SEPARATE**
  You verify yourself first, then create or claim the company account under that verified identity. Two distinct things.
- **USE AN EMAIL YOU WILL KEEP FOREVER — NOT ONE TIED TO A JOB YOU MIGHT LEAVE**
  This login controls your federal registration. Losing access to it is a recoverable problem, but a slow and irritating one.

TRAP — THE TSP ROLE

REGISTER AS A CARRIER, NOT A TRANSPORTATION SERVICE PROVIDER

FMCSA has posted an alert about carriers whose email addresses were inadvertently registered under the Transportation Service Provider role in Motus, which then blocks them from claiming their own USDOT record. If you pick the wrong role, the TSP account can be closed — but read the role descriptions carefully the first time and save yourself the support ticket.

4.4 USDOT NUMBER OR AUTHORITY — WHICH DO YOU NEED

These are two different things and people conflate them constantly. Most for-hire interstate carriers need both, applied for in the same session.

USDOT NUMBER

IDENTITY — FREE

Your unique identifier in FMCSA's system. It is how the agency tracks your safety record, inspections, crashes, and audit history. It is not permission to haul anything. Private carriers, intrastate carriers in most states, and for-hire carriers all have one.

COSTS NOTHING — ISSUED AS PART OF REGISTRATION

MC AUTHORITY

PERMISSION — $300 PER AUTHORITY

Operating authority, carrying the MC, MX or FF prefix. Required to transport regulated freight for hire in interstate commerce. This is the document brokers check before they will tender you a load, and it activates only after your insurance is filed.

FOR-HIRE INTERSTATE — YOU NEED THIS TOO

CONFIRM BEFORE YOU PAY

FMCSA charges $300 for each type of operating authority requested, and states plainly that the fee is non-refundable. The USDOT number itself is free. Apply for two types — a household goods carrier needs two — and you pay $300 twice. Fees are set by regulation and can change — confirm the amount Motus displays at the payment screen before you submit, and never pay a fee quoted to you by a third party instead.

IF YOU ARE ALSO THINKING ABOUT BROKERING

BROKER AUTHORITY REQUIRES A $75,000 SURETY BOND

You can apply for it in the same session, but understand what you are signing up for. That bond is a serious financial instrument, not a filing fee, and brokering is a different business from carrying with different rules. Get the carrier side working first.

4.5 FILLING IT OUT

FIELDS THAT MUST MATCH EXACTLY

LEGAL NAME — CHARACTER FOR CHARACTER WITH THE STATE FILING

Discrepancies between your Motus application and your state registration cause delays.

FIELDS YOU CAN REVISE LATER

VEHICLE AND DRIVER COUNTS — ESTIMATE HONESTLY

They do not lock you in, but they affect how FMCSA categorizes your operation and can influence audit priority.

EIN, NEVER YOUR SOCIAL SECURITY NUMBER (SSN) — THIS IS A COMMON AND COSTLY ERROR

You formed an entity in Part Three precisely so the business has its own number. Use it.

PRINCIPAL ADDRESS — WHERE RECORDS ACTUALLY LIVE

This is where an auditor would come. It should be a place you can produce documents from.

CARGO CLASSIFICATIONS — CHECK WHAT YOU WILL REALLY HAUL

Checking every box because it seems safer is not safer. Some classifications carry additional requirements.

REVIEW EVERY FIELD BEFORE SUBMITTING — CORRECTIONS AFTER THE FACT ARE SLOW

Read it twice. It is a federal filing, not a signup form.

4.6 WHAT HAPPENS AFTER YOU SUBMIT

APPLICATION TO ACTIVE AUTHORITY 3.6

1. **YOU SUBMIT AND PAY**
   USDOT number is typically issued at this stage. Authority is not yet active.

2. **FMCSA PUBLISHES YOUR APPLICATION**
   It appears in the Federal Register, opening a mandatory 10-day protest period during which anyone may object.

3. **YOU USE THE WAIT PRODUCTIVELY**
   This is when you arrange insurance, file your BOC-3, and set up your drug and alcohol testing program. Parts Five and Six.

4. **INSURANCE AND PROCESS AGENT FILINGS LAND**
   Your insurer files proof of financial responsibility; your blanket agent files the BOC-3. Authority cannot activate without both.

✓ **AUTHORITY GRANTED**
Typically four to six weeks from application. Then you can legally haul regulated freight for hire across state lines.

PLAN AROUND THIS, NOT AGAINST IT

FOUR TO SIX WEEKS IS NOT DEAD TIME

It is exactly enough time to get insurance quoted and bound, choose a process agent, enroll in a testing consortium, build your driver qualification file, and pick an electronic logging device (ELD). People who treat the wait as downtime start their first month unprepared. People who work it start hauling the week authority lands.

4.7 FRAUD AND THE PEOPLE WHO WILL CALL YOU

The moment your application publishes, your information becomes public. Expect the phone to start ringing within days.

- **NEW REGISTRANT LISTS ARE PUBLIC — AND HEAVILY MINED**
  FMCSA publishes registration decisions daily. Companies buy that data and call new carriers immediately, often within 24 hours of publication.
- **NOBODY FROM FMCSA WILL CALL DEMANDING PAYMENT — EVER**
  Callers claiming your authority will be revoked unless you pay them today are running a script. FMCSA maintains a fraud alerts page for exactly this reason.
- **"MANDATORY" FILINGS THAT ARE NOT MANDATORY — A STANDARD PITCH**
  You will be told you must buy a drug testing consortium, a compliance package, or a Unified Carrier Registration (UCR) filing through the caller specifically. You must do some of those things. You never have to do them through whoever called you.
- **VERIFY BY CALLING FMCSA YOURSELF — AT THE NUMBER BELOW, NOT ONE YOU WERE GIVEN**
  If a caller says something is wrong with your registration, hang up and check your own Motus dashboard.

4.8 WHO TO CALL

FMCSA — VERIFIED CONTACTS

REGISTRATION	`motus.dot.gov` — apply, manage, and check status
PHONE	`1-800-832-5660` — the registration team answers Monday through Friday, 8 AM to 8 PM Eastern
LIVE CHAT	`ask.fmcsa.dot.gov` — chat launch from the FMCSA site
MAIL	Federal Motor Carrier Safety Administration, 1200 New Jersey Avenue SE, Washington, DC 20590
RESOURCES HUB	`fmcsa.dot.gov/registration/resources-hub` — Motus fact sheets, job aids, and the Explainer video series
CHECK ANY CARRIER	`safer.fmcsa.dot.gov` — Company Snapshot, including your own once issued
FRAUD ALERTS	`fmcsa.dot.gov/registration/fraud-alerts` — read this before you take the calls in 3.7

Verified against FMCSA's own registration pages on the date of this edition. Phone hours and URLs change; confirm at fmcsa.dot.gov if something does not answer.

4.9 BEFORE PART FIVE

- [ ] Identity verified and user profile created in Motus
- [ ] Company account created under the correct role — carrier, not TSP
- [ ] Legal name entered exactly as filed with the state
- [ ] EIN entered — not a Social Security number
- [ ] Vehicle and driver counts and cargo classifications reviewed
- [ ] Application submitted and fee paid from the business account
- [ ] USDOT number recorded somewhere you will not lose it

- [ ] Protest period start date noted on a calendar

- [ ] Insurance and process agent work started during the wait

`49 U.S.C. 13901` `49 U.S.C. 13902` `49 U.S.C. 13908` `FRN 91 FR — Apr 29, 2026` `motus.dot.gov`

THE BOC-3 PROCESS AGENT FILING

The cheapest step in this entire guide, the one most people understand least, and one of only two things standing between your application and active authority. It takes about ten minutes and costs less than a tank of fuel — but you are not allowed to file it yourself.

5.1 WHAT A PROCESS AGENT IS

- **A PERSON WHO ACCEPTS LAWSUITS ON YOUR BEHALF — IN A STATE WHERE YOU ARE NOT**
  If someone sues your company in Ohio and you are in Colorado, the court needs a real human at a real address in Ohio to hand the papers to. That is the process agent.
- **THEY FORWARD THE PAPERS TO YOU — USUALLY BY CERTIFIED MAIL**
  Their job is receipt and forwarding, not defending you. Many process agents are attorneys, which is why the role is taken seriously.
- **THE POINT IS PUBLIC ACCESS TO YOU — NOT PAPERWORK FOR ITS OWN SAKE**
  You operate a heavy vehicle in states where you have no office. The law wants anyone you injure or shortchange to be able to reach you in court without chasing you across the country.
- **FORM BOC-3 IS THE DESIGNATION — "DESIGNATION OF AGENTS"**
  One form, naming who serves that role in every state where designation is required.
- **YOUR AUTHORITY WILL NOT ACTIVATE WITHOUT IT — THIS IS A GATE, NOT A FORMALITY**
  Along with your insurance filing, this is one of the two things Federal Motor Carrier Safety Administration (FMCSA) waits on before granting operating authority.

WHY THIS ONE IS WORTH UNDERSTANDING

KEEP YOUR MAILING ADDRESS CURRENT WITH FMCSA AND WITH YOUR AGENT

The whole chain only works if the papers reach you. An agent who accepts service and forwards it to an address you abandoned two years ago has done their job — and you have a default judgment you never knew about. Update both whenever you move.

5.2 WHO HAS TO FILE

FOR-HIRE CARRIER

INTERSTATE, HAULING FOR OTHERS

Must designate a process agent in every state where it holds authority to operate and every state its trucks travel through during those operations. A carrier running thirty states needs coverage in all thirty plus anything traversed.

YOU — FILE IT

BROKER / FORWARDER

ARRANGING, NOT HAULING

Coverage required in every state where offices are maintained or contracts are written, including the District of Columbia. A narrower obligation than a carrier's, because the exposure is different.

FILE IT — NARROWER SCOPE

PRIVATE CARRIER

HAULING YOUR OWN GOODS

Generally does not need a BOC-3. The exception is a private carrier conducting international transportation through the United States between points in a foreign country — those must designate for every state traversed.

USUALLY EXEMPT — CHECK THE INTERNATIONAL EXCEPTION

BROKER WITH TRUCKS

BOTH ROLES AT ONCE

A broker or freight forwarder that operates no commercial motor vehicles may self-designate its principal place of business. The moment it also operates CMVs, that exception is gone and a registered process agent is required.

OPERATE A TRUCK — YOU LOSE THE SELF-DESIGNATION

5.3 THE QUIRK NOBODY EXPLAINS

If you look up Part 366 yourself, you will find something confusing, and it is worth thirty seconds of your attention because it changes which rule text actually governs you.

- **SEVERAL SECTIONS OF PART 366 ARE SUSPENDED — SINCE JANUARY 14, 2017**
  Published at 82 FR 5303. They were written for the Unified Registration System rollout that got suspended along with them.
- **THE LIVE RULES CARRY A "T" — 366.1T, 366.4T, 366.5T**
  The T sections are the ones in force. If a guide quotes plain 366.1 or 366.5 at you, it is quoting suspended text.
- **REAL CONSEQUENCE, NOT TRIVIA — IT DECIDES WHETHER PRIVATE CARRIERS MUST FILE**
  The suspended text swept in private carriers. The active text does not. That is the difference between an unnecessary filing and a correct one.
- **BLANKET DESIGNATIONS LIVE AT 366.5T — WHICH IS HOW ALMOST EVERYONE ACTUALLY FILES**
  It permits a carrier to adopt the list of agents an association or corporation has already filed with FMCSA.

> THE BLANKET DESIGNATION STATEMENT, 49 CFR 366.5T
>
> Those persons named in the list of process agents on file with the Federal Motor Carrier Safety Administration by ________ (Name of association or corporation) and any subsequently filed revisions thereof, for the States in which this carrier is or may be authorized to operate, including States traversed during such operations, except those States for which individual designations are named.

That single sentence is why a blanket filing works. You are not naming fifty agents. You are adopting a list somebody else already filed, and it updates when their list updates.

5.4 YOU CANNOT FILE THIS YOURSELF

THE RULE

ONLY A REGISTERED PROCESS AGENT SUBMITS IT — MOTOR CARRIERS CANNOT SELF-FILE
This is the one step in the whole guide where a third party is genuinely required rather than merely selling you convenience.

BLANKET OR STATE-BY-STATE

BLANKET, ALL STATES — WHAT ALMOST EVERYONE SHOULD CHOOSE
One filing, national coverage, no amendments when your lanes change. Both approaches are permitted under Part 366; this is the one that survives growth.

YOU MAY BE YOUR OWN AGENT IN YOUR HOME STATE — IF YOU KEEP A PHYSICAL OFFICE DURING BUSINESS HOURS

For every other state you still need blanket coverage, so this rarely saves anyone anything.

ONLY ONE CURRENT FORM MAY BE ON FILE — AND IT MUST COVER ALL REQUIRED STATES

A second filing replaces the first. Duplicates create confusion about who your agent actually is.

KEEP A COPY AT YOUR PRINCIPAL PLACE OF BUSINESS — THE REGULATION SAYS SO EXPLICITLY

One more document for the audit binder you will build in Part Fiveteen.

STATE-BY-STATE — PERMITTED, AND A TRAP FOR NEW CARRIERS

It works right up until a load routes you through a state your designation does not reach.

COVERAGE MUST INCLUDE STATES TRAVERSED — NOT JUST STATES YOU DELIVER IN

Driving through counts. This is why partial coverage fails in practice.

5.5 TIMING AND WHAT IT COSTS

File it at the same time as your operating authority application. Authority cannot activate until it is on file, so a late BOC-3 simply extends your wait.

WHAT THE MARKET CHARGES

Representative pricing observed at the date of this edition — confirm before you buy

PROVIDER TYPE	TYPICAL PRICE	STRUCTURE
Budget filing services	**$25–$50**	One-time, all states
Mid-market services	**$75**	One-time, often same-day filing
American Trucking Associations	**$99/yr**	Non-members; free to ATA members; filed within 72 hours
"Lifetime" packages	**Varies**	One payment, coverage until you change agents
Service of process delivery	**~$50**	Charged only if you are actually served

Read the structure, not just the number. Annual and one-time filings both exist and both are legitimate. A BOC-3 has no fixed expiration date — but it lapses if your agent stops representing you or stops being registered, and a lapse puts your authority at risk. That is what an annual fee is really buying: someone actively maintaining the designation. Prices observed at the date of this edition and subject to change.

WHERE TO FIND A LEGITIMATE AGENT

FMCSA publishes a list of BOC-3 processing agents at **fmcsa.dot.gov/registration/process-agents**. Start there rather than with whoever called you the day your application published. If a company is not on FMCSA's list, ask why before you pay.

5.6 HOW IT GOES WRONG

- **NAME OR NUMBER MISMATCH — THE BOC-3 SAYS ONE THING, FMCSA RECORDS SAY ANOTHER**
  Happens after a rebrand or ownership change that was not carried across every filing. Use the exact legal name from Part Three, every time, on every document.
- **PARTIAL STATE COVERAGE — DESIGNATING ONLY THE STATES YOU RUN TODAY**
  Works until a load takes you somewhere your BOC-3 does not reach. Blanket coverage costs the same.
- **ASSUMING IT RENEWS ITSELF — OR ASSUMING IT MUST**
  Both assumptions cause problems. One leaves an outdated filing nobody checks; the other produces unnecessary refiling and duplicate filings that confuse the record.
- **SILENT LAPSE WHEN AN AGENT EXITS — NOBODY SENDS YOU A WARNING LETTER**
  If your agent stops representing you or stops being registered, the designation lapses and your authority is exposed. Check it during your annual compliance review.
- **FILING IT LATE — AND WONDERING WHY AUTHORITY HAS NOT ACTIVATED**
  The regulation requires filing at the time of your registration application. Failure to file a designation results in deactivation of the United States Department of Transportation (USDOT) number.
- **NEVER KEEPING A COPY — WHEN THE RULE REQUIRES ONE AT YOUR PRINCIPAL PLACE OF BUSINESS**
  Download the confirmation and put it in the same folder as your Articles and Employer Identification Number (EIN) notice.

5.7 WHERE TO GO

PROCESS AGENT RESOURCES

AGENT LIST	fmcsa.dot.gov/registration/process-agents — FMCSA's own list of BOC-3 processing agents
THE REGULATION	ecfr.gov — 49 CFR Part 366. Read the sections ending in T; those are in force
FMCSA PHONE	1-800-832-5660 — Monday through Friday, 8 AM to 8 PM Eastern
CHECK YOUR FILING	safer.fmcsa.dot.gov — Company Snapshot shows whether a BOC-3 is on file
FRAUD ALERTS	fmcsa.dot.gov/registration/fraud-alerts — before you respond to a cold call about this filing

5.8 BEFORE PART SIX

- [ ] Confirmed you need a BOC-3 — for-hire interstate, not private
- [ ] Chose a blanket agent from FMCSA's published list
- [ ] Exact legal name and MC number given to the agent, matching FMCSA records
- [ ] Blanket all-state coverage selected, not state-by-state
- [ ] Understood whether your fee is one-time or annual
- [ ] Filing confirmed submitted — check Company Snapshot
- [ ] Copy saved at your principal place of business, as the rule requires
- [ ] Mailing address current with both FMCSA and your agent

49 CFR Part 366 | 49 CFR 366.1T | 49 CFR 366.2 | 49 CFR 366.4T(b) | 49 CFR 366.5T | 82 FR 5303 (Jan 17, 2017)

INSURANCE AND THE FILINGS THAT ACTIVATE

The largest recurring cost in your first year, the gate your authority sits behind, and the part of the business most likely to end it. There are two separate standards here — what the federal government requires, and what the freight market requires — and they are not the same number.

6.1 TWO STANDARDS, NOT ONE

FEDERAL MINIMUM

49 CFR PART 387

A floor set by regulation, based on vehicle weight and what you haul. Your insurer proves it to Federal Motor Carrier Safety Administration (FMCSA) with an electronic filing. Meet it and your authority can activate. It is the legal threshold, not a business plan.

MEETS THE LAW — NOTHING MORE

MARKET REQUIREMENT

WHAT BROKERS ACTUALLY DEMAND

Set by contract, not regulation. Brokers and shippers commonly want $1,000,000 auto liability and $100,000 cargo before they will tender a load, with higher cargo limits for high-value freight. No federal rule compels this. It is simply the price of being hired.

GETS YOU LOADS — THE REAL FLOOR

BUDGET AGAINST THE HIGHER NUMBER

Quote your policy at what the market wants, not what the regulation says. A carrier insured to the federal minimum and no further is legally compliant and commercially unhirable.

6.2 THE FEDERAL MINIMUMS

49 CFR 387.9 — SCHEDULE OF LIMITS

Verified on eCFR. Section amended at 91 FR 45660, July 21, 2026

OPERATION	VEHICLE	MINIMUM
For-hire, interstate, non-hazardous property	gross vehicle weight rating (GVWR) 10,001 lbs or more	**$750,000**
Oil and listed hazardous materials or waste not in the rows below	Any	**$1,000,000**
Bulk hazmat in cargo tanks, portable tanks or hopper vehicles, certain Divisions	Any	**$5,000,000**
Most dangerous classes of hazardous material	GVWR under 10,001 lbs	**$5,000,000**
Non-hazardous property, for-hire	GVWR under 10,001 lbs	**Exempt**

Verify before relying on it. Section 387.9 was amended recently. Read the current text at ecfr.gov under Title 49, Part 387, Subpart A before quoting these figures to an insurer or a broker.

CORRECTION — A FIGURE YOU WILL SEE REPEATED EVERYWHERE

THERE IS NO $300,000 LIGHT-VEHICLE MINIMUM IN THE CURRENT RULE

Many insurance and filing sites still list $300,000 for non-hazardous freight in vehicles under 10,001 pounds. That figure does not appear in the current Subpart A schedule. Property carriers below 10,001 pounds hauling non-hazardous freight fall outside these minimums entirely.

That is not permission to run bare. Brokers require $1,000,000 regardless of vehicle size, your state's own requirements still apply, and one at-fault injury claim without coverage ends the business. Treat the exemption as a trap, not a discount.

CARRYING IT IS ONE THING — PROVING IT IS ANOTHER

THE LAW ASKS TWO SEPARATE QUESTIONS

First, do you actually have coverage at the required level. Second, can you prove it to the federal government. Under **49 CFR 387.7** there are exactly three accepted forms of proof. Almost every new carrier uses the first one and should not seriously consider the other two — but you will hear all three named, so here is what each actually is.

1. MCS-90

AN ENDORSEMENT FROM YOUR INSURER

You buy a normal commercial auto liability policy from an insurance company, and the insurer attaches an extra page to it called the MCS-90 endorsement. That page is a promise to the government and the public that the required money will be there. It is a normal document your insurance agent handles as routine — you ask for it, they add it.

WHAT YOU WILL USE — ASK YOUR AGENT FOR IT BY NAME

2. MCS-82

A SURETY BOND INSTEAD OF A POLICY

A surety bond is not insurance. A bonding company promises the government it will pay claims if you do not — and then bills you for every dollar it pays out. You are still fully on the hook; the bond only guarantees the injured party gets paid promptly. Bonding companies want collateral or strong financials before issuing one at these limits.

RARE FOR CARRIERS — YOU REPAY EVERY CLAIM

3. SELF-INSURANCE

WRITTEN FMCSA AUTHORIZATION, 49 CFR 387.309

You pay claims out of your own money with no insurer and no bond. You cannot simply decide to do this. You must apply to FMCSA and receive written authorization, and the agency examines your financial condition before granting it. This exists for large fleets with substantial assets and reserves.

NOT AVAILABLE TO A NEW CARRIER — DO NOT PLAN AROUND IT

KEEP THE PAPER

AT YOUR PRINCIPAL PLACE OF BUSINESS

Whichever of the three applies to you, the evidence has to live at the address you gave FMCSA as your principal place of business — the same address from Part Four. That means a physical or clearly organized digital copy an auditor can be shown on request, not a document sitting only in your insurance agent's email.

SAME FOLDER AS YOUR ARTICLES, EIN AND BOC-3

PLAIN VERSION

Buy a commercial auto liability policy at the right limit and ask your agent to attach the MCS-90 endorsement. That is the answer for essentially every new carrier. The other two paths exist in the regulation and are worth recognizing when someone mentions them, but neither is a realistic route for a business that is starting this month.

The MCS-90 is important enough — and misunderstood often enough — that it gets its own section next.

6.3 WHAT THE MCS-90 ACTUALLY DOES

This is the most misunderstood document in trucking, and the misunderstanding costs people money.

- **IT IS AN ENDORSEMENT, NOT A POLICY — IT ATTACHES TO YOUR AUTO LIABILITY**
  It does not replace coverage and it does not add coverage you bought. It is proof of financial responsibility bolted onto a policy you already hold.
- **IT PROTECTS THE PUBLIC, NOT YOU — THAT IS THE WHOLE DESIGN**
  It guarantees that an injured member of the public gets paid for bodily injury or property damage you are legally responsible for, even in situations a standard policy might exclude.
- **THE INSURER CAN COME AFTER YOU AFTERWARD — THIS IS THE PART NOBODY MENTIONS**
  If the insurer pays a claim under the MCS-90 that your policy would not otherwise have covered, it can seek reimbursement from you. The endorsement is a public safety net, not personal protection.
- **EVERY TRUCK MUST BE LISTED AND INSURED — BECAUSE THE INSURER IS ON THE HOOK**
  Policies carrying an MCS-90 require full disclosure of the equipment you own or operate. An unlisted truck is a claim waiting to be denied.

6.4 THE FORMS, AND WHO FILES THEM

You do not file any of these. Your insurer does. Your job is confirming they did.

FILING FORMS AT A GLANCE

Form titles per FMCSA Federal Register notices; filing requirement at 49 CFR 387.303(c)

FORM	WHAT IT IS	WHO NEEDS IT
BMC-91	Motor Carrier Automobile Bodily Injury and Property Damage Liability Certificate of Insurance	Every for-hire carrier — one insurer covers the full limit
BMC-91X	Same certificate, multi-insurer version	When your required limit is split across more than one company
BMC-82	Surety bond for bodily injury and property damage liability	Alternative to an insurance certificate
MCS-90	Endorsement attached to the auto liability policy	Kept on your policy — see 5.3
BMC-34	Household Goods Motor Carrier Cargo Liability Certificate of Insurance	Household goods carriers only

FORM	WHAT IT IS	WHO NEEDS IT
BMC-83	Household goods cargo liability surety bond	Household goods carriers, bond route
BMC-84 / BMC-85	Broker or freight forwarder surety bond / trust fund	Brokers and forwarders — $75,000

FMCSA does not want your declarations page. They want an electronic filing showing the correct minimum is in force for the correct United States Department of Transportation (USDOT) number, MC number, and legal name. This is the third place that exact legal name from Part Three has to match.

6.5 CARGO INSURANCE — THE MYTH

- **FMCSA DOES NOT REQUIRE CARGO INSURANCE FROM MOST CARRIERS — ONLY HOUSEHOLD GOODS**
  Only household goods motor carriers are required to file evidence of cargo insurance with FMCSA, under 49 CFR 387.303(c). General freight carriers have no federal cargo filing obligation.
- **HOUSEHOLD GOODS MINIMUM — $5,000 PER VEHICLE, $10,000 PER OCCURRENCE**
  Filed on BMC-34, or BMC-83 if you use a surety bond instead of a policy.
- **YOU WILL STILL BUY CARGO COVERAGE — BECAUSE BROKERS DEMAND IT**
  Commonly $100,000 per occurrence, with higher limits for high-value freight. That requirement comes from the contract you sign, not from the government.
- **ANYONE TELLING YOU THE FMCSA REQUIRES YOUR CARGO POLICY — IS SELLING SOMETHING OR REPEATING A MYTH**
  Knowing the difference lets you negotiate limits against what brokers in your lane actually ask for, instead of over-buying to satisfy a rule that does not exist.

6.6 THE STACK YOU WILL ACTUALLY BE QUOTED

An agent quoting a new authority will walk you through most of these. Know what each one is before the call so you are choosing rather than nodding.

REQUIRED OR NEAR-REQUIRED

SITUATIONAL BUT COMMON

PRIMARY AUTO LIABILITY — THE FEDERAL ONE

Injury and property damage you cause. This is what gets filed on the BMC-91.

MOTOR TRUCK CARGO — BROKER-REQUIRED IN PRACTICE

Damage to the freight you are hauling. $100,000 is the common ask.

PHYSICAL DAMAGE — LENDER-REQUIRED IF FINANCED

Damage to your own truck and trailer. If you have a note on the equipment, this is not optional.

TRAILER INTERCHANGE — IF YOU PULL EQUIPMENT YOU DO NOT OWN

Covers a trailer in your possession under an interchange agreement.

GENERAL LIABILITY — OFF-TRUCK EXPOSURE

Injuries and damage at a dock or yard rather than on the road. Some shippers require it to enter their facility.

NON-TRUCKING / BOBTAIL — WHEN THE TRUCK IS NOT UNDER DISPATCH

Covers use outside business purposes, which primary liability typically excludes.

OCCUPATIONAL ACCIDENT — OWNER-OPERATOR INJURY COVERAGE

Where workers' compensation does not apply because there is no employee. Rules vary by state — check yours.

WORKERS' COMPENSATION — THE MOMENT YOU HIRE A DRIVER

State-mandated, and the requirement lands as soon as you have an employee rather than a contractor.

6.7 TIMING, AND HOW IT GOES WRONG

INSURANCE TO ACTIVE AUTHORITY 5.7

1. **GET QUOTES DURING THE PROTEST PERIOD**
   You have four to six weeks from Part Four. Use them. Give every agent the same information so the quotes are comparable.

2. **BIND THE POLICY**
   Confirm the limit matches or exceeds your 387.9 requirement and that the MCS-90 endorsement is attached.

3. **INSURER FILES BMC-91 OR 91X ELECTRONICALLY**
   Confirm your legal name, USDOT number and MC number on the filing are exactly right.

4. **YOU VERIFY IT POSTED**
   Check Company Snapshot at safer.fmcsa.dot.gov. Do not take anyone's word that it went through.

✓ **AUTHORITY SHOWS ACTIVE**
Insurance filed and BOC-3 filed. Confirm "Active" before you haul a single regulated load.

✗ **LAPSE AT ANY POINT LATER**
A cancelled or lapsed policy pulls your filing, and authority goes inactive. Missed premium payments end businesses that were otherwise working.

- **INCOMPLETE OR LATE FILINGS SUSPEND AUTHORITY — NOT JUST DELAY IT**
  A missing BMC-91, or a missing BMC-34 where one is required, stalls activation and can suspend an active authority.
- **A WRONG NAME ON THE FILING READS AS NO FILING — THE SYSTEMS MATCH ON EXACT TEXT**
  Same failure mode as the BOC-3 in Part Five. One legal name, everywhere, forever.
- **NEVER HAUL BEFORE YOU SEE "ACTIVE" — CHECK IT YOURSELF ON SAFETY AND FITNESS ELECTRONIC RECORDS (SAFER)**
  Operating without active authority is a serious violation, and your insurer may treat the loss differently if you were not legally authorized to be running.
- **NEW-AUTHORITY PRICING IS PUNISHING — AND IT IMPROVES**
  You have no safety record, so you pay for that. Clean Compliance, Safety, Accountability (CSA) scores, no claims, and consistent premium payment are what bring renewal quotes down. That is a real reason to care about Parts Eleven through Fourteen.

6.8 WHO TO CALL

INSURANCE VERIFICATION

THE RULE	ecfr.gov — 49 CFR Part 387, Subpart A. Sections 387.7, 387.9, 387.303, 387.309
FMCSA GUIDANCE	fmcsa.dot.gov/registration/insurance-filing-requirements — the agency's own filing requirements page
CHECK YOUR STATUS	safer.fmcsa.dot.gov — Company Snapshot shows insurance on file and authority status
FMCSA PHONE	1-800-832-5660 — Monday through Friday, 8 AM to 8 PM Eastern
BEFORE YOU BUY	Ask any agent: what limit are you filing, on which form, and will you send me confirmation it posted?

6.9 BEFORE PART SEVEN

- [ ] Identified your required minimum under 387.9, verified against current eCFR text
- [ ] Quoted at market levels, not just the federal floor
- [ ] Policy bound with the MCS-90 endorsement attached
- [ ] Every truck and trailer listed on the policy
- [ ] Insurer confirmed BMC-91 or 91X filed with exact legal name, USDOT and MC numbers
- [ ] Cargo coverage sized to what brokers in your lane require
- [ ] Filing verified posted on SAFER Company Snapshot
- [ ] Authority confirmed "Active" before hauling anything
- [ ] Premium payment scheduled so it can never lapse

49 CFR 387.7 | 49 CFR 387.9 | 49 CFR 387.303(c) | 49 CFR 387.309 | 49 U.S.C. 13906 | 91 FR 45660 (Jul 21, 2026)

UCR, IRP AND INTERNATIONAL FUEL TAX AGREEMENT (IFTA)

Three acronyms, three separate programs, one confusing pattern: all three are federally authorized, none of them are run by the federal government. You deal with your home state for every one, and only one of the three applies to every carrier.

7.1 WHAT EACH ONE IS

UCR

UNIFIED CARRIER REGISTRATION

An annual permit fee based on how many commercial vehicles you own or operate. Funds state motor carrier safety programs and enforcement. Not a permit to haul anything — just a fee that must be paid.

EVERY INTERSTATE CARRIER — INCLUDING ONE TRUCK

IRP

INTERNATIONAL REGISTRATION PLAN

Apportioned license plates. Instead of registering your truck separately in every state you drive through, you register once in your base state and your fees get distributed among the states based on miles driven in each.

HEAVY VEHICLES CROSSING LINES — THE APPORTIONED PLATE

IFTA

INTERNATIONAL FUEL TAX AGREEMENT

The same idea applied to fuel taxes. One license, one quarterly return filed with your base state, and the fuel tax you owe gets divided among the states where you actually burned the fuel.

SAME TRUCKS AS IRP — QUARTERLY FILING FOREVER

THE PATTERN TO HOLD ONTO

FEDERAL LAW CREATES THEM — YOUR STATE ADMINISTERS THEM

You will not find these in Motus. You apply through your own state's revenue department or motor vehicle division, pay your state, and file your returns with your state. Your state then settles up with the others. The only thing the federal government does here is require the arrangement to exist.

7.2 UCR — WHO PAYS AND HOW MUCH

- **OWE IT IF YOU HAVE AN ACTIVE UNITED STATES DEPARTMENT OF TRANSPORTATION (USDOT) NUMBER AND RUN INTERSTATE — ONE TRUCK COUNTS**
  For-hire, private, and exempt commodity carriers all owe it, plus brokers, freight forwarders and leasing companies. Carriers domiciled in Canada or Mexico operating in the United States owe it too.

- **FEE IS BY FLEET SIZE, NOT PER TRUCK — SIX BRACKETS**
  Based on the number of commercial vehicles reported on your last MCS-150, or the total owned and operated for the 12-month period ending June 30 of the prior year.

- **PURELY INTRASTATE CARRIERS ARE EXEMPT — UNLESS THEIR STATE ELECTS OTHERWISE**
  Carriers that handle no interstate freight and make no interstate movements fall outside it, along with Performance and Registration Information Systems Management (PRISM) registrants that hold no interstate operating authority.

- **YOU DO NOT CARRY UCR PAPERWORK IN THE TRUCK — THERE IS NO CREDENTIAL TO DISPLAY**
  Enforcement checks the database. Nothing needs to ride in the cab for this one.

49 CFR 367.50 — CURRENT FEE BRACKETS

Verified on eCFR. Table applies to registration years beginning 2025 and each subsequent year

BRACKET	COMMERCIAL VEHICLES	CARRIER FEE	BROKER / LEASING
B1	0–2	**$46**	**$46**
B2	3–5	**$138**	—
B3	6–20	**$276**	—
B4	21–100	**$963**	—

BRACKET	COMMERCIAL VEHICLES	CARRIER FEE	BROKER / LEASING
B5	101–1,000	**$4,592**	—
B6	1,001 and above	**$44,836**	—

You are B1. One truck, two trucks — $46 a year. That is the entire UCR cost of starting this business, and it is the cheapest line item in the guide.

Change is pending. Federal Motor Carrier Safety Administration (FMCSA) published a proposed rule increasing 2027 fees by an average of 20 percent, ranging from $9 to $9,329 per entity depending on bracket. Even after the proposed increase, 2027 fees would remain below what was charged from 2019 through 2022. Confirm the current year's fee at plan.ucr.gov before paying.

TRAP — THE STATES THAT DO NOT PARTICIPATE

NOT PARTICIPATING DOES NOT MEAN NOT ENFORCING

These states do not collect UCR, but they all enforce it. If you are based in one, you register through a neighboring participating state instead — the application walks you through selecting a base state.

ARIZONA | FLORIDA | HAWAII | MARYLAND | NEVADA | NEW JERSEY | OREGON | VERMONT | WYOMING | WASHINGTON DC

TRAP — THE LOOKALIKE UCR SITES

Search "UCR registration" and the top results are private third-party services charging a service fee on top of the state fee. Some say so in fine print. The official portal is **plan.ucr.gov**. Same pattern as the Secretary of State lookalikes in Part Three — check the domain before you pay.

7.3 IRP — APPORTIONED PLATES

This is the one that determines what plate hangs on the back of your truck, and it is where the box truck lane and the heavy lane finally diverge.

WHO NEEDS APPORTIONED PLATES

HOW IT WORKS

POWER UNITS OVER 26,000 LBS GROSS WEIGHT — OPERATING IN TWO OR MORE MEMBER JURISDICTIONS

Whether by registered weight or actual weight, single unit or combination.

ANY POWER UNIT WITH THREE OR MORE AXLES — REGARDLESS OF WEIGHT

Axle count alone qualifies a vehicle even when it is under the weight threshold.

UNDER 26,000 LBS WITH TWO AXLES — GENERALLY DOES NOT QUALIFY

This is why most box truck operators run standard commercial plates from their home state instead. Confirm with your own state before assuming.

REGISTER ONCE WITH YOUR BASE STATE — GET ONE PLATE AND A CAB CARD

The cab card lists every jurisdiction you are apportioned in and the weight you are registered for in each. It rides in the truck.

FEES SPLIT BY MILES DRIVEN IN EACH STATE — NOT EVENLY

First year uses estimated mileage charts; after that, your actual reported miles.

COST SCALES WITH WEIGHT AND DISTANCE — NOT A FLAT FEE

A single tractor running many states can run well into four figures annually. Get a quote from your base state before you commit to a lane profile.

KEEP MILEAGE RECORDS — IRP AUDITS HAPPEN

Trip records, fuel receipts and electronic logging device (ELD) data all support your reported distances.

7.4 IFTA — FUEL TAX

- **SAME QUALIFYING VEHICLES AS IRP — OVER 26,000 LBS, OR THREE OR MORE AXLES**
  If your truck qualifies for apportioned plates, assume it qualifies for IFTA too and confirm with your base state.
- **ONE LICENSE, TWO DECALS PER TRUCK — FROM YOUR BASE STATE**
  Decals go on both sides of the cab. A copy of the license rides in the vehicle. Renewed annually.
- **YOU FILE A RETURN EVERY QUARTER — FOREVER, EVEN AT ZERO**
  Miles driven in each jurisdiction and fuel purchased in each jurisdiction. Zero-activity quarters still require a return. Missing them draws penalties and can suspend the license.
- **THE MATH IS FUEL BOUGHT VERSUS FUEL BURNED — PER STATE**
  Buy fuel in a low-tax state and burn it in a high-tax state and you owe the difference. Buy more than you burn somewhere and you get credit. That is the entire mechanism.
- **RECORD-KEEPING IS THE REAL WORK — NOT THE FILING**
  Every fuel receipt, every state-line crossing, every mile. This is why ELD and fuel card data matter beyond hours of service. Set the system up before your first load, not at your first deadline.

IF YOUR TRUCK DOES NOT QUALIFY

TRIP PERMITS EXIST FOR OCCASIONAL CROSSINGS

A vehicle that does not qualify for IRP or IFTA, or one that qualifies but only rarely leaves the state, can buy temporary trip permits and fuel permits at the border or in advance. If you cross often, permits get expensive fast and full registration becomes cheaper. Run the arithmetic on your actual lane pattern.

7.5 WHICH OF THE THREE APPLIES TO YOU

QUICK REFERENCE

Confirm each against your base state before acting

YOUR SETUP	UCR	IRP	IFTA
Cargo van, interstate	**Yes**	No	**No**
Box truck 26,000 lbs, two axles, interstate	**Yes**	Usually no	**Usually no**
Hotshot, pickup + gooseneck, three or more axles	**Yes**	**Yes**	**Yes**
Tractor-trailer, interstate	**Yes**	**Yes**	**Yes**
Purely intrastate, any size	Generally no	No	**No**

Read the hotshot row carefully. Axle count qualifies a vehicle for IRP and IFTA independently of weight. A pickup and gooseneck combination can cross three axles easily, which pulls a small operation into apportioned plates and quarterly fuel tax filing that a similarly sized box truck avoids entirely. That is a real operating-cost difference between the two entry lanes from Part One, and almost nobody factors it in before buying.

7.6 WHERE TO GO

REGISTRATIONS AND FEES

UCR OFFICIAL	plan.ucr.gov — the official Unified Carrier Registration portal and fee bracket page
UCR FEE RULE	ecfr.gov — 49 CFR 367.50 for the codified fee table
IRP	irponline.org — the plan itself; apply through your base state, not here
IFTA	iftach.org — IFTA Inc., including current tax rate matrices by quarter
YOUR BASE STATE	Search your state name plus "IRP IFTA motor carrier services." Confirm you are on a .gov address
COLORADO EXAMPLE	Handled through the Colorado Department of Revenue, Division of Motor Vehicles motor carrier services
FMCSA PHONE	1-800-832-5660 — Monday through Friday, 8 AM to 8 PM Eastern

7.7 BEFORE PART EIGHT

- [ ] UCR bracket identified — B1 if you run one or two trucks
- [ ] UCR paid through plan.ucr.gov, not a third-party lookalike
- [ ] Base state selected if your home state does not participate
- [ ] UCR renewal date calendared — it is annual and there is no grace period
- [ ] Determined whether your vehicle qualifies for IRP, by weight or axle count
- [ ] Apportioned plates applied for through your base state, if qualifying
- [ ] IFTA license and decals obtained, decals mounted, license copy in the cab
- [ ] Quarterly IFTA filing dates on a calendar
- [ ] Mileage and fuel receipt system set up before the first load

49 U.S.C. 14504a | 49 CFR Part 367 | 49 CFR 367.50 | 89 FR 51276 (Jun 17, 2024) | plan.ucr.gov

FORM 2290 AND THE HEAVY VEHICLE TAX

A federal excise tax paid to the Internal Revenue Service (IRS), not your state — but your state will not plate your truck until you prove you paid it. It applies only above 55,000 lbs, which means a large share of readers can skip this part entirely. Find out which group you are in first.

8.1 DOES THIS APPLY TO YOU

UNDER 55,000 LBS

TAXABLE GROSS WEIGHT

No Form 2290, no Heavy Vehicle Use Tax, nothing to file. A 26,000 lb box truck is nowhere near this line. Neither is a typical hotshot pickup and gooseneck combination. Skip to Part Nine.

NOT YOUR PROBLEM — MOVE ON

55,000 LBS OR MORE

TAXABLE GROSS WEIGHT

You must file Form 2290 and pay the tax if a taxable highway motor vehicle is registered, or required to be registered, in your name under state, District of Columbia, Canadian or Mexican law at the time of its first use during the tax period.

TRACTOR-TRAILER TERRITORY — READ ON

WHAT "TAXABLE GROSS WEIGHT" MEANS HERE

Not the same as the gross vehicle weight rating (GVWR) on your door plate from Part One. For this tax it is the combined weight of the vehicle, the trailers customarily used with it, and the maximum load customarily carried. A tractor plated for 80,000 lbs is comfortably over the line. A straight truck at 26,000 lbs is not, even fully loaded.

WHO IT CAN APPLY TO

The requirement reaches individuals, businesses, partnerships, corporations, LLCs and other organizations. Being an owner-operator with one truck does not exempt you. The trigger is the vehicle's weight, not the size of the company.

8.2 THE TAX PERIOD AND THE DEADLINE

- **THE YEAR RUNS JULY 1 TO JUNE 30 — NOT JANUARY TO DECEMBER**
  The current period began July 1, 2026 and ends June 30, 2027. Everything about this tax is keyed to that cycle, which is why it catches people who think in calendar years.
- **YOUR DEADLINE FOLLOWS FIRST USE, NOT REGISTRATION — THIS IS THE PART PEOPLE GET WRONG**
  The filing deadline is the last day of the month following the month you first used the vehicle on public highways. The IRS states plainly that the tax due date is not tied to the vehicle registration date.
- **FIRST USED IN JULY — FILE BY AUGUST 31**
  That is the common annual deadline everyone quotes, and it applies to trucks already in service at the start of the period.
- **BUY A TRUCK MID-YEAR — THE TAX IS PRORATED**
  For an additional taxable vehicle placed on the road in any month other than July, the tax is prorated for the months it was in service, and the deadline is the end of the following month.
- **DEADLINE ON A WEEKEND OR HOLIDAY — NEXT BUSINESS DAY**
  Standard IRS treatment. The agency publishes a table on IRS.gov to determine your exact date.

WORKED EXAMPLES 7.2

A **TRUCK ALREADY RUNNING ON JULY 1**
First use is July. File by August 31. Pay the full year.

B **YOU BUY A TRACTOR AND DRIVE IT OFF THE LOT OCTOBER 12**
First use is October. File by November 30. Tax prorated for October through June.

C **YOU BUY IN MARCH, PARK IT, FIRST DRIVE IT IN APRIL**
First use is April, not March. Purchase date is irrelevant — public highway use starts the clock.

✕ **YOU WAIT UNTIL YOUR PLATE RENEWAL COMES UP**

Wrong clock entirely. The registration date has nothing to do with this deadline, and by then you are late.

8.3 WHAT IT COSTS

ANNUAL TAX BY WEIGHT CATEGORY

Full-period rates for vehicles first used in July — verify current figures in the Form 2290 instructions

TAXABLE GROSS WEIGHT	ANNUAL TAX
Below 55,000 lbs	**No tax**
55,000 lbs	**$100**
55,001 – 75,000 lbs	**$100 plus $22 per 1,000 lbs over 55,000**
Over 75,000 lbs	**$550 — the maximum**

The ceiling is the useful part. However heavy your truck, the annual tax tops out at the maximum figure — a typical 80,000 lb tractor-trailer pays the top rate and no more. These figures match the tax computation table printed on IRS Form 2290 (Rev. July 2025). Rates are set for each tax period, so confirm the current schedule at irs.gov before filing rather than relying on a figure quoted anywhere else, including here.

Two adjustments that catch people. A **logging vehicle** — one used exclusively to haul forest products from a forested site — pays 75% of the standard rate, so $75.00 at 55,000 lbs and $412.50 at the maximum. And a vehicle **first used after July** pays a prorated partial-period tax, not the full annual amount; the partial-period tables are at the end of the Form 2290 instructions.

THE LOW-MILEAGE RULE

UNDER 5,000 MILES — YOU STILL FILE, YOU JUST DO NOT PAY

If you reasonably expect to use the vehicle 5,000 miles or fewer during the tax period — 7,500 miles for farm vehicles — you must still file a Form 2290 return. The tax is suspended, not the filing. And if the vehicle later exceeds that mileage limit during the period, the full tax amount becomes due.

8.4 SCHEDULE 1 — THE DOCUMENT YOU ACTUALLY NEED

This is why Part Eight exists in the sequence where it does. The tax matters. The receipt matters more.

- **SCHEDULE 1 LISTS EVERY VEHICLE YOU ARE REPORTING — IT IS PART OF FORM 2290**
  You file it with the return. The IRS stamps it and sends it back.
- **THE STAMPED COPY IS YOUR PROOF OF PAYMENT — FOR STATE REGISTRATION**
  It serves as proof of payment when you register your vehicles in any state, unless specifically exempted. No stamped Schedule 1, no plates.
- **E-FILE AND YOU HAVE IT IN MINUTES — ELECTRONICALLY STAMPED**
  Follow your IRS-approved e-file provider's instructions and the stamped Schedule 1 comes back almost immediately.
- **FILE BY MAIL AND WAIT UP TO SIX WEEKS — AFTER THE IRS RECEIVES IT**
  Six weeks with a truck you cannot plate is six weeks of payments on equipment that cannot earn. This is the single strongest argument for e-filing.
- **E-FILING IS MANDATORY AT 25 OR MORE VEHICLES — AND ENCOURAGED FOR EVERYONE**
  The IRS publishes a list of approved e-file providers on IRS.gov. Use one from that list.

> TRAP — THE SEQUENCING THAT STRANDS NEW CARRIERS
>
> **INTERNATIONAL REGISTRATION PLAN (IRP) WANTS SCHEDULE 1, AND SCHEDULE 1 TAKES TIME**
>
> Your base state will not issue apportioned plates from Part Seven without proof the Heavy Vehicle Use Tax is paid. If you mail Form 2290 and then walk into motor vehicle services, you will be turned away and told to come back in six weeks. E-file first, get the stamped Schedule 1 the same day, then go get plates.

8.5 FILING IT

WHAT YOU NEED

WATCH FOR

YOUR EMPLOYER IDENTIFICATION NUMBER (EIN) — A SOCIAL SECURITY NUMBER WILL NOT WORK

Form 2290 requires an EIN. This is the fourth place the Part Three work pays off.

A NEW EIN TAKES TIME TO BECOME USABLE — PLAN AHEAD

A freshly issued EIN can take a couple of weeks before it is recognized by the e-file system. Get the EIN early, as Part Three instructed.

VEHICLE IDENTIFICATION NUMBER (VIN) FOR EVERY VEHICLE — TYPED CORRECTLY

A wrong VIN on a stamped Schedule 1 means correcting the return before you can register. Check it character by character.

TAXABLE GROSS WEIGHT CATEGORY — PER VEHICLE

Vehicle plus customary trailers plus customary maximum load.

LATE FILING DRAWS PENALTIES AND INTEREST — AND BLOCKS REGISTRATION

The compliance problem compounds: you owe more and you cannot legally plate the truck.

MISSED A PRIOR PERIOD — FILE THAT YEAR'S VERSION, NOT THIS YEAR'S

Each tax period has its own revision of Form 2290. Use the correct one for the period you missed and pay as soon as possible.

SOLD THE TRUCK — CREDITS AND TRANSFERS EXIST

Tax already paid on a vehicle that is sold, destroyed or stolen can generate a credit. Ask your preparer rather than paying twice.

MAILING IT — USE THE CORRECT IRS ADDRESS

The address differs depending on whether payment is enclosed. Check the current instructions.

8.6 WHERE TO GO

IRS — HEAVY VEHICLE USE TAX

THE FORM	irs.gov — search "Form 2290" for the current revision and instructions
INSTRUCTIONS	irs.gov/instructions/i2290 — the July 2026 revision covers July 1, 2026 through June 30, 2027
TRUCKING TAX CENTER	irs.gov — the IRS hub for trucking tax questions, deadline tables and examples
E-FILE PROVIDERS	irs.gov — the list of IRS-approved 2290 e-file providers. Use one from this list, not one from a search ad
PAYMENT VOUCHER	Form 2290-V, if paying by check or money order rather than electronically
YOUR STATE	Motor vehicle services will ask for the stamped Schedule 1 at registration — have it before you go

8.7 BEFORE PART NINE

- [ ] Determined your taxable gross weight — under or over 55,000 lbs
- [ ] If under, confirmed nothing to file and moved on
- [ ] Identified your vehicle's first-use month on public highways
- [ ] Deadline calculated from first use, not from registration renewal
- [ ] EIN confirmed active and usable in the e-file system
- [ ] VIN verified character by character before submitting
- [ ] Filed electronically through an IRS-approved provider
- [ ] Stamped Schedule 1 received and saved with your Articles, EIN and BOC-3
- [ ] Schedule 1 in hand before going to get apportioned plates
- [ ] Next July renewal on a calendar

IRS Form 2290 (Rev. 07-2026) | Instructions for Form 2290 (07/2026) | Form 2290 Schedule 1 | Form 2290-V | 26 U.S.C. 4481

DRUG AND ALCOHOL TESTING

The requirement that makes an owner-operator confront something strange: you are simultaneously the driver being tested and the employer doing the testing. You cannot randomly select yourself, which is why one particular vendor in this guide is genuinely mandatory rather than merely convenient.

9.1 DOES THIS APPLY TO YOU

Before anything else, establish which side of the line you sit on, because this part carries real annual cost and real audit exposure — and it does not reach everyone.

CDL REQUIRED

THE VEHICLE NEEDS A CDL TO OPERATE

49 CFR Part 382 applies to you, in full. Pre-employment testing, random testing, post-accident, reasonable suspicion, return-to-duty and follow-up. Plus the Clearinghouse. Plus a consortium.

FULL PROGRAM — NO WAY AROUND IT

NON-CDL VEHICLE

UNDER 26,001 LBS, NO HAZMAT

Part 382 attaches to commercial motor vehicles requiring a commercial driver's license. A box truck under the CDL threshold generally falls outside the federal testing mandate — even though it is still a CMV for the rest of the safety regulations.

VERIFY BEFORE YOU ASSUME — SEE THE TRAP BELOW

TRAP — DO NOT TREAT THIS AS A FREE PASS

FEDERAL EXEMPTION IS NOT THE END OF THE QUESTION

Three things can pull a non-CDL operation into a testing program anyway. Your **insurer** may require one as a condition of coverage. A **shipper or broker** may require it in the contract. And your **state** may impose its own testing rules on intrastate carriers below the federal threshold.

Confirm your specific situation against 49 CFR Part 382 and your state's rules before deciding you are outside this. The cost of being wrong is a failed audit; the cost of enrolling unnecessarily is roughly the price of a tank of fuel per year.

9.2 THE DUAL ROLE

- **OPERATING UNDER YOUR OWN AUTHORITY — YOU ARE DRIVER AND EMPLOYER AT ONCE**
  Federal Motor Carrier Safety Administration (FMCSA) treats a self-employed CDL driver as both. You must meet the requirements that apply to drivers and the requirements that apply to employers, simultaneously.

- **NEARLY EVERY OWNER-OPERATOR FAILURE TRACES TO THIS — THE EMPLOYER HALF IS INVISIBLE**
  The driver-side obligations feel obvious. The carrier-side obligations — maintaining a qualification file on yourself, running your own Clearinghouse queries, keeping the records — stay invisible until an audit asks for them.

- **A POOL OF ONE CANNOT BE RANDOM — THAT IS THE WHOLE REASON A CONSORTIUM EXISTS**
  Random selection requires unpredictable, equal-chance selection administered by someone else. You cannot randomly select yourself, so FMCSA requires an owner-operator not leased to a carrier to belong to a consortium.

- **LEASED TO SOMEONE ELSE'S AUTHORITY — DIFFERENT ANSWER**
  A driver operating under another employer's authority does not independently need to meet the employer Clearinghouse requirements. That motor carrier handles the employer obligations. Under your own authority, nobody does it for you.

9.3 THE SIX KINDS OF TEST

49 CFR PART 382, SUBPART C 8.3

1 **PRE-EMPLOYMENT**
A negative drug test is required before a driver first performs safety-sensitive functions. Including you, on yourself, before your first load.

2 **RANDOM**
Selected by a scientifically valid method, unannounced, reasonably spread through the calendar year.

3 **POST-ACCIDENT**
Triggered by qualifying accidents under the regulation's criteria. Know these before you need them, not after.

4 **REASONABLE SUSPICION**
Based on trained supervisor observation of appearance, behavior, speech or odor.

5 **RETURN-TO-DUTY**
After a violation, before returning to safety-sensitive work. Must be arranged and reported through the process — a self-directed test does not satisfy it.

6 **FOLLOW-UP**
A schedule of unannounced tests after return to duty, on top of the random program.

– **THE DOT PANEL SCREENS FIVE SUBSTANCE GROUPS — MARIJUANA, COCAINE, AMPHETAMINES, OPIOIDS, PCP**
Every result is verified by a Medical Review Officer before it is reported. The MRO is the gatekeeper between a laboratory result and a reported violation.

– **PROCEDURES LIVE IN PART 40, NOT PART 382 — TWO DIFFERENT RULEBOOKS**
Part 382 says when and why you test. Part 40 governs how specimens are collected, handled and reported, and binds collection sites, laboratories and MROs as well as you.

9.4 RANDOM TESTING RATES

ANNUAL MINIMUM RATES

Set under 49 CFR 382.305(b) and published in the Federal Register — confirm the current year before relying on it

TEST TYPE	MINIMUM ANNUAL RATE	BASIS
Controlled substances	**50%**	Of the average number of driver positions

TEST TYPE	MINIMUM ANNUAL RATE	BASIS
Alcohol	**10%**	Of the average number of driver positions

Rates are set annually. The FMCSA Administrator sets a minimum annual percentage for random alcohol testing and a separate minimum for random controlled substances testing, publishing any change in the Federal Register effective the following January 1. The rates above have been in effect since 2020 and are unchanged for 2026 — but check each January rather than assuming.

WHAT 50 PERCENT MEANS FOR ONE DRIVER

It is a rate across the pool, not a guarantee about you specifically. In a consortium pool you may be selected twice in a year or not at all. What matters for compliance is that the pool is drawn correctly and that you show up when your name comes out. Selections must use a scientifically valid random method, every driver must have an equal probability of selection at every draw, and notification must be unannounced.

9.5 THE CONSORTIUM — AND THE LIABILITY THAT DOES NOT TRANSFER

WHAT A C/TPA DOES

POOLS YOU WITH OTHER CARRIERS' DRIVERS — MAKING RANDOM SELECTION POSSIBLE

A Consortium / Third-Party Administrator enrolls you into a pooled random testing group.

RUNS THE DRAWS AND BOOKS THE COLLECTION — AND ROUTES THE SPECIMEN

To an HHS-certified laboratory, then coordinates Medical Review Officer review of any non-negative result.

HANDLES REQUIRED CLEARINGHOUSE REPORTING — ON YOUR BEHALF

Including violation reporting an owner-operator cannot perform for themselves.

WHAT IT DOES NOT DO

DELEGATING THE PROGRAM DOES NOT DELEGATE LIABILITY — READ THIS TWICE

Under 49 CFR Part 382 the motor carrier is the regulated entity. FMCSA does not audit consortiums. FMCSA audits you.

THEIR MISTAKE LANDS ON YOUR DOORSTEP — NOT THEIRS

A missed quarterly draw, an unreported violation, or a random rate that slipped below the minimum produces a notice of violation addressed to your company.

COST IS MODEST — COMMONLY UNDER $100 A YEAR FOR A SINGLE OPERATOR

Advertised rates as low as around $49 annually exist. Compare on what is included, not just the headline number.

A ONE-PAGE ENROLLMENT FORM IS NOT AN AGREEMENT — AND MANY CARRIERS SIGN ONE AND STOP THERE

Your consortium or third-party administrator (C/TPA) agreement should specify draw frequency, notification timelines, record retention, Clearinghouse reporting deadlines, and what happens if the C/TPA fails to perform.

WHY THIS MATTERS MORE THAN IT LOOKS

A TESTING PROGRAM FAILURE IS AN AUTOMATIC AUDIT FAILURE

New authority holders enter FMCSA's New Entrant Safety Assurance Program under 49 CFR Part 385, Subpart D. There is a defined list of violations that cause automatic failure of the safety audit, and a drug and alcohol testing program failure sits on that list. This forty-nine-dollar line item can end the business. Part Fiveteen covers the audit in full.

9.6 THE CLEARINGHOUSE

A federal database of drug and alcohol program violations by CDL holders. Rules live in 49 CFR Part 382, Subpart G.

- **BOTH EMPLOYERS AND C/TPAS MUST REGISTER — AND SO MUST YOU, IN BOTH ROLES**
  As an employer with no staff, you must designate a C/TPA in the Clearinghouse to perform the employer functions you cannot perform for yourself.
- **QUERY ANNUALLY FOR EVERY DRIVER — INCLUDING YOURSELF**
  A query must be completed at least once during every rolling 12-month period for each driver covered by Part 382. The rolling window is the part people miss — it is not a calendar-year deadline.
- **FULL QUERY OR LIMITED QUERY — AND THE 24-HOUR ESCALATION**
  A limited query requires the driver's consent and must escalate to a full query within 24 hours if it turns up a record.
- **A CONFIRMED VIOLATION MEANS PROHIBITED STATUS — NO SAFETY-SENSITIVE DUTY AT ALL**
  The driver is barred until completing the DOT return-to-duty process. For an owner-operator that means the truck stops.

- **A QUERY IS NOT A TEST — THEY ARE SEPARATE OBLIGATIONS**
  Queries review the Clearinghouse record. Drug and alcohol tests are a different compliance action entirely. Doing one does not satisfy the other.

- **DO NOT ASSUME THE C/TPA BOUGHT YOUR QUERY PLAN — A COMMON AND COSTLY ASSUMPTION**
  Query plans are purchased in the Clearinghouse. Confirm who bought yours and that it has queries remaining before the rolling deadline arrives.

9.7 WHERE TO GO

TESTING AND CLEARINGHOUSE

CLEARINGHOUSE	`clearinghouse.fmcsa.dot.gov` — register as both employer and driver, designate your C/TPA, buy a query plan
THE RULES	`ecfr.gov` — 49 CFR Part 382 for when and why; 49 CFR Part 40 for how
RANDOM RATES	49 CFR 382.305(b); changes published in the Federal Register effective the following January 1
OWNER-OPERATOR GUIDANCE	`fmcsa.dot.gov` — the Clearinghouse Learning Center has an owner-operator section
FMCSA PHONE	`1-800-832-5660` — Monday through Friday, 8 AM to 8 PM Eastern
CHOOSING A C/TPA	Ask: draw frequency, notification method, who reports to the Clearinghouse, record retention, and what happens if you miss a draw

9.8 BEFORE PART TEN

- [ ] Confirmed whether your vehicle requires a CDL — and therefore whether Part 382 applies
- [ ] Checked insurer, broker and state requirements even if federally exempt
- [ ] Enrolled in a consortium with a written agreement, not just an enrollment form
- [ ] Pre-employment test completed and negative — before the first load

- [ ] Registered in the Clearinghouse as both employer and driver
- [ ] C/TPA designated in the Clearinghouse
- [ ] Query plan purchased and confirmed — do not assume the C/TPA did it
- [ ] Annual query calendared on a rolling 12-month basis
- [ ] Written drug and alcohol testing policy on file — no government template exists for this one
- [ ] Post-accident testing criteria read and understood before you need them

`49 CFR Part 382` `49 CFR 382.301` `49 CFR 382.305(b)` `49 CFR Part 382 Subpart G` `49 CFR Part 40` `49 CFR Part 385 Subpart D`

THE DRIVER QUALIFICATION FILE

The first thing an auditor asks for, and the thing most new carriers get wrong before they have hired anyone. Because the first driver file you owe the government is the one you keep on yourself.

10.1 YOU ARE THE DRIVER AND THE EMPLOYER

- **ONE PERSON, TWO SETS OF RULES — BOTH APPLY IN FULL**
  49 CFR 391.1(b): someone who is both a motor carrier and a driver employed by that carrier must comply with the rules for carriers and the rules for drivers.
- **A FILE ON YOURSELF — BEFORE YOU HIRE ANYBODY**
  The carrier keeps a driver qualification file for each driver it employs. You employ yourself. The file exists from the day you start driving.
- **AUDITORS OPEN THIS FIRST — IT IS THE CHEAPEST THING TO CHECK**
  Paperwork either exists or it does not. No judgment call, no dispute. It is where a new entrant audit starts.
- **NOTHING HERE COSTS MONEY — ONLY ATTENTION**
  A physical, some record requests, and a folder. The expensive part is discovering at the audit that you never opened one.

> THE MISTAKE ALMOST EVERYONE MAKES
>
> New owner-operators assume driver files begin when they hire a driver. The regulation does not say that. It says the carrier keeps a file for each driver it employs, and you are one. Carriers reach their audit at month three with an empty drawer and a truck that has been running the whole time.

10.2 SEVEN THINGS THAT MAKE A DRIVER QUALIFIED

49 CFR 391.11(b). All seven, all the time. Fail one and the person is not qualified to drive, whatever else is in the folder.

1 AT LEAST 21 YEARS OLD

The regulation says it plainly, with no age ladder and no exception inside this section. Limited exemptions live in Subpart G. Many states amend this number down to 18 for purely intrastate operation, which is a state rule, not a federal one — check your state before relying on it.

2 READS AND SPEAKS ENGLISH SUFFICIENTLY

The regulation is specific about what sufficiently means: converse with the general public, understand highway traffic signs and signals in English, respond to official inquiries, and make entries on reports and records. This is being enforced roadside again after years of little attention.

3 CAN SAFELY OPERATE THAT TYPE OF VEHICLE

By experience, training, or both. A judgment the carrier makes and should be able to explain.

4 PHYSICALLY QUALIFIED UNDER SUBPART E

The DOT medical exam. Covered in 9.5.

5 HOLDS A VALID COMMERCIAL MOTOR VEHICLE (CMV) LICENSE FROM ONE STATE ONLY

One jurisdiction. Not two licenses, not a license from a state you no longer live in. This is a common disqualifier for people who moved recently.

6 NOT DISQUALIFIED UNDER 391.15

The disqualifying offenses list. Driving under the influence, leaving the scene, felonies involving a vehicle, and others.

7

COMPLETED A ROAD TEST, OR AN ACCEPTED EQUIVALENT

Either a road test certificate under 391.31, or a license or certificate the carrier accepted as equivalent under 391.33. The equivalent has to be documented, not assumed.

10.3 WHAT GOES IN THE FILE

49 CFR 391.51(b). Eight items. Compliance vendors advertise ten because they are quoting a version of this regulation that no longer exists.

THE EIGHT REQUIRED ITEMS

Every one of these applies to the file you keep on yourself.

ITEM	CITATION	WHEN
Employment application	**391.21**	**Before hire**
motor vehicle record (MVR) from each licensing authority	**391.23(a)(1)**	**Within 30 days**
Road test certificate or accepted equivalent	**391.31 / 391.33**	**Before driving**
Annual MVR	**391.25(a)**	**Every 12 months**
Note of the annual review	**391.25(c)(2)**	**Every 12 months**
Medical examiner's certificate	**391.43(g)**	**Every 24 months**
skill performance evaluation (SPE) certificate or medical exemption	**391.49**	**If applicable**
National Registry verification note	**391.23(m)(1)**	**Non-CDL drivers**

Two of these carry traps. **The annual review note** must record who performed the review and the date. A copy of the MVR alone does not satisfy it. **The National Registry note** now applies only to drivers not required to hold a commercial driver's license (CDL) — the parallel requirement for CDL drivers ended June 22, 2025.

WHAT IS NO LONGER REQUIRED

The annual list of violations under 391.27 was removed from the file contents. Plenty of checklists, templates, and paid compliance services still include it. Keeping it costs you nothing but a signature; the point is that a service charging you for a ten-item file is selling you a list that has not been current for years.

10.4 THERE ARE TWO FILES, NOT ONE

This is the part almost nobody explains, and it is the one that fails audits.

DQ FILE

DRIVER QUALIFICATION FILE · 391.51

The eight items above. May be combined with the driver's personnel file. Ordinary business record.

KEPT WHILE EMPLOYED, PLUS THREE YEARS

DIH FILE

DRIVER INVESTIGATION HISTORY FILE · 391.53

The safety performance history you collected from previous DOT-regulated employers. The regulation requires this to be kept in a secure location with controlled access, separate from the general file.

RESTRICTED ACCESS IS PART OF THE REQUIREMENT

WHY THE SECOND FILE IS SEPARATE

It contains other employers' statements about a driver's drug and alcohol history and accident record. The driver has due process rights to review it, dispute it, and attach a rebuttal. Storing it loose in the same folder as the application is itself a finding, even when every document is present.

10.5 THE INVESTIGATION YOU OWE ON EVERY HIRE

49 CFR 391.23. Two separate obligations that people collapse into one.

THE DRIVING RECORD INQUIRY

- **EVERY LICENSING AUTHORITY, THREE YEARS BACK**

THE SAFETY PERFORMANCE HISTORY

- **ALL DOT-REGULATED EMPLOYERS, THREE YEARS BACK**

Not just the current state. Every state where the driver held a license or permit in the preceding three years.

- **WITHIN 30 DAYS OF EMPLOYMENT STARTING**
  The record goes into the DQ file inside that window.
- **NO RESPONSE STILL REQUIRES A RECORD**
  Document the good faith effort. Silence from a state is not a pass.

From the date of the employment application, for any safety-sensitive work requiring drug and alcohol testing.

- **DRUG AND ALCOHOL VIOLATIONS SPECIFICALLY**
  Whether the driver violated Part 382 Subpart B or Part 40, and whether they failed to complete a program prescribed by a substance abuse professional.
- **PREVIOUS EMPLOYERS GET 30 DAYS TO ANSWER**
  Their clock, not yours. Yours is documenting that you asked.

WHAT THE WRITTEN RECORD MUST CONTAIN

The method is up to you — phone, letter, email, in person. The record is not. For each previous employer you must capture the employer's name and address, the date you contacted them or the attempts you made, and the information you received. A failure to reach them, or their failure to respond, has to be documented too.

TELL THE APPLICANT BEFORE THEY APPLY

Under 391.21(d), before an application is submitted you must inform the applicant that their previous employers will be contacted for this purpose, and notify them in writing of their due process rights under 391.23(i). Doing the investigation correctly but skipping this notice is still a violation.

10.6 THE DOT MEDICAL CERTIFICATE

EVERY 24 MONTHS AT MOST — OFTEN LESS

391.45(b) sets the outer limit. An examiner can certify for a shorter period — one year, or three months — when a condition needs monitoring. The certificate's own expiration date governs, not the 24-month default.

ONLY A NATIONAL REGISTRY EXAMINER — VERIFY BEFORE THE APPOINTMENT

The exam must be performed by a medical examiner listed on the National Registry of Certified Medical Examiners. A certificate from anyone else is void, and an auditor can check the registry in seconds.

- **MCSA-5875 STAYS WITH THE EXAMINER — MCSA-5876 COMES TO YOU**
  The Medical Examination Report is the long form. Under 391.43(i) the examiner keeps it at least three years from the date of examination and must produce it to Federal Motor Carrier Safety Administration (FMCSA) or an enforcement agency within 48 hours of a request. The Medical Examiner's Certificate is the card you carry and copy into the driver file.

- **CDL HOLDERS CERTIFY THROUGH THE STATE — NOT THROUGH A PHOTOCOPY**
  For CDL drivers the medical certification status flows to the Commercial Driver's License Information System (CDLIS) motor vehicle record from the licensing state, and that record is what belongs in the file. The 15-day grace period for using a copy of the certificate ended June 22, 2025.

- **BOTH FORMS MUST BE COMPLETE — OR THE CERTIFICATE IS NOT VALID**
  The forms are published in 391.43(f)(2) and (h)(2) and must be used as issued. A certificate missing fields — the examiner's phone number, licence details — can be rejected by the state licensing agency, which leaves you uncertified while believing you passed.

- **THE DATE IN THE CORNER IS NOT YOUR EXPIRY — READ THE CERTIFICATE**
  The date printed in the top right of both forms is the federal paperwork approval expiring, not your medical card. Your expiration date is the one the examiner wrote on the certificate itself.

- **A PENDING EXAM IS NOT A PASSING EXAM — 45 DAYS TO RESOLVE**
  If the examiner delays the determination to gather more information, the driver has 45 days to complete it, and the pending status is reported to FMCSA. Nobody drives on a pending result.

10.7 THE CLOCKS

Five intervals run this part. Missing one is the finding.

WHAT IS DUE WHEN

INTERVAL	WHAT IT GOVERNS	CITATION
30 days	MVR into the file after employment begins	**391.23(a)(1)**
30 days	Previous employers' window to respond to you	**391.23**
12 months	Annual MVR inquiry and documented review	**391.25**
24 months	Medical examination, unless certified shorter	**391.45(b)**
3 years	File retained after employment ends	**391.51(c)**

The three-year retention runs **after** the driver leaves, on top of the whole period they were employed. Separately, 391.51(d) lets you remove five specific items — the annual MVR, the annual review note, the medical certificate, any medical variance, and the National Registry note — three years after each was executed. That is what keeps a long-tenured driver's file from becoming a decade of paper.

SET THE ANNUAL REVIEW ON A DATE YOU WILL NOT FORGET

The annual inquiry and review is the single most commonly missed item in this part, because nothing prompts you. Nobody sends a renewal notice. Tie it to something fixed — the anniversary of your authority, or the month your 2290 is due — and write the reviewer's name and the date on the note every time.

10.8 WHO TO CONTACT

NATIONAL REGISTRY OF CERTIFIED MEDICAL EXAMINERS

Purpose	Find a certified examiner near you and verify one before an appointment
Site	nationalregistry.fmcsa.dot.gov

FMCSA

Phone	1-800-832-5660
Hours	Monday to Friday, 8 AM to 8 PM Eastern
Ask	Whether a specific record satisfies a Part 391 requirement for your operation

YOUR STATE DRIVER LICENSING AGENCY

Purpose	Motor vehicle records at hire and annually; CDLIS record for CDL medical certification status
Note	Request from every state where the driver held a license in the past three years, not only the current one

`49 CFR 391.11` `49 CFR 391.21` `49 CFR 391.23` `49 CFR 391.25` `49 CFR 391.43` `49 CFR 391.45` `49 CFR 391.51` `49 CFR 391.53`

10.9 BEFORE YOU MOVE ON

Opened a driver qualification file on yourself, dated from when you started driving

Completed an employment application on yourself under 391.21

Requested your own MVR from every state that licensed you in the past three years

Confirmed your CDL or operator's license is from one state only and currently valid

Held a DOT physical with an examiner verified on the National Registry

Filed the MCSA-5876 certificate, or confirmed your CDLIS record shows certified status

Documented a road test certificate or the equivalent you accepted

Opened a separate, access-controlled driver investigation history file

Set a recurring annual date for the MVR inquiry and the signed review note

Written down the date your medical certificate expires, from the card itself

HOURS OF SERVICE AND ELDS

Three clocks run at once and they do not pause for traffic, loading docks, or the fact that you own the company. This is the part where being the boss buys you nothing, and where the exceptions are worth real money if you know which one you qualify for.

11.1 THREE CLOCKS, RUNNING TOGETHER

49 CFR 395.3, for property-carrying vehicles. Every clock has to be satisfied. Being legal on two of them is not being legal.

1 10 CONSECUTIVE HOURS OFF, BEFORE YOU DRIVE AT ALL

The shift does not start until you have taken it. Not eight hours plus a nap. Ten consecutive.

2 14 CONSECUTIVE HOURS TO WORK IN

The window opens when you come on duty and runs on real time. Lunch does not stop it. Three hours at a receiver does not stop it. When hour 14 passes, you may not drive, even if you have driving hours left.

3 11 HOURS OF ACTUAL DRIVING INSIDE THAT WINDOW

The driving limit sits inside the 14-hour window, not alongside it. Whichever runs out first ends your driving.

THE CLOCK THAT RUINS NEW CARRIERS

The 14-hour window is the one people misjudge, because it is the only clock that keeps running while you are not driving. A load that sits four hours at a dock has eaten four hours you can never get back that day. Two long waits and your eleven driving hours are unreachable no matter how rested you are.

11.2 THE 30-MINUTE INTERRUPTION

TRIGGERED BY DRIVING TIME — NOT BY HOURS ON DUTY
Driving is not permitted once more than 8 hours of driving time have passed without a consecutive 30-minute interruption. Time spent working but not driving does not advance this clock.

IT DOES NOT HAVE TO BE A BREAK — ONLY AN INTERRUPTION
Off-duty, sleeper berth, or on-duty-not-driving all count, and so does a combination of them. Thirty consecutive minutes strapping a load satisfies it.

SHORT-HAUL DRIVERS ARE EXEMPT — UNDER EITHER EXCEPTION IN 395.1(E)
If you qualify for short-haul that day, the interruption requirement does not apply to you that day.

USE IT, DO NOT FIGHT IT

Because on-duty-not-driving counts, most owner-operators satisfy this without losing a minute of productive time. Fuel, a pre-trip inspection, paperwork at a shipper. Plan the stop where work already has to happen and the rule costs you nothing.

11.3 THE WEEKLY LIMITS AND THE RESTART

WHICH LIMIT APPLIES TO YOU

- **60 HOURS IN 7 CONSECUTIVE DAYS**
  If your company does not operate commercial motor vehicles every day of the week.
- **70 HOURS IN 8 CONSECUTIVE DAYS**
  If it does operate every day of the week.
- **YOU CHOOSE BY HOW THE COMPANY RUNS**

THE 34-HOUR RESTART

- **34 OR MORE CONSECUTIVE HOURS OFF DUTY**
  Any 7-day or 8-day period may end with the beginning of an off-duty period of 34 or more consecutive hours.
- **IT RESETS THE WEEKLY TOTAL, NOTHING ELSE**
  The daily clocks were already reset by your 10 hours off. The restart is about the 60 or 70.

Not by preference. A one-truck operation that never runs Sundays is on the 60-hour schedule.

- **CONSECUTIVE MEANS CONSECUTIVE**
  A single minute of on-duty time in the middle voids it and starts the 34 over.

11.4 THE EXCEPTIONS WORTH KNOWING

49 CFR 395.1. Three of these apply to ordinary small carriers. The rest cover oilfield, agriculture, and emergencies.

SHORT-HAUL

395.1(E)(1)

Exempt from records of duty status and from supporting documents entirely, which in practice means exempt from the electronic logging device (ELD). You must operate within a 150 air-mile radius of your normal work reporting location, return there and be released within 14 consecutive hours, and have 10 consecutive hours off between shifts.

QUALIFIED PER DAY — NEVER PER WEEK

ADVERSE CONDITIONS

395.1(B)(1)

Permits driving for not more than two additional hours beyond the maximum, to complete the run or reach a place of safety — 395.1(b)(1). The regulation defines the conditions narrowly: snow, ice, sleet, fog, other adverse weather, or unusual road or traffic conditions that were not known and could not reasonably have been known before the duty day began or before driving resumed.

CONGESTION YOU COULD HAVE PREDICTED DOES NOT COUNT

SLEEPER BERTH

395.1(G)

Split the 10 hours into two periods: at least 7 consecutive hours in the berth, plus at least 2 hours off duty inside or outside it, totalling at least 10. Paired correctly, neither period counts against your 14-hour window.

THE ONLY LEGAL WAY TO STRETCH A 14-HOUR DAY

THE SHORT-HAUL MISTAKE ENFORCEMENT LOOKS FOR

Short-haul is a day-by-day qualification. Every condition must be met on every single day you claim it. Go 160 air miles on a Wednesday, or get released at hour fifteen, and you owe a full record of duty status for that day — which you cannot produce after the fact if you were not running an ELD.

Also check the numbers on any advice you read. Federal Motor Carrier Safety Administration (FMCSA) raised the short-haul radius from 100 air miles to 150 and the workday from 12 hours to 14 in a rule effective September 29, 2020. Compliance sites are still publishing the old figures as current.

WHAT SHORT-HAUL COSTS YOU INSTEAD

Skipping the ELD does not mean skipping records. The carrier must maintain and retain for six months accurate time records showing, for each day, the time the driver reported for duty, the total hours on duty, and the time released from duty. That is the trade: a timecard instead of a logging device.

11.5 DO YOU NEED AN ELD

WHO IS REQUIRED TO RUN ONE

The ELD requirement follows the record of duty status requirement. If you owe a log, you owe it electronically unless you fall in an exception.

OPERATION	OWES A LOG	ELD REQUIRED
Interstate CMV, ordinary long-haul	**Yes**	**Yes**
Qualifies for short-haul every day	**No**	**No**
Keeps logs 8 days or fewer in any 30	**Sometimes**	**No**
Vehicle manufactured before model year 2000	**Yes**	**No**
Driveaway-towaway, vehicle is the commodity	**Yes**	**No**
Driveaway-towaway of a motor home or RV trailer	**Yes**	**No**

Two of these are widely misread. **The 8-in-30 provision** is not a licence to skip logs; it means a driver who only occasionally falls outside short-haul may use paper for those days. **The pre-2000 exception** turns on the vehicle being manufactured before model year 2000, **as reflected in the vehicle identification number shown on the registration** — not on the engine. A repowered truck does not qualify on the strength of an older engine.

BEING EXEMPT FROM THE DEVICE IS NOT BEING EXEMPT FROM THE RULES

Every exception in this section is about the recording method. None of them changes the 11-hour, 14-hour, 10-hour, or weekly limits. A driveaway operator with no ELD is still out of service at hour fifteen.

11.6 WHAT YOU KEEP, AND FOR HOW LONG

- **SHORT-HAUL TIME RECORDS — SIX MONTHS**
  Report time, total on-duty hours, and release time for each day, retained by the carrier.
- **THE DEVICE IS NOT THE RECORD — THE DATA IS**
  An ELD that stops reporting, or a subscription that lapses, does not erase the obligation. Back-ups and the ability to produce the data are the carrier's problem, meaning yours.
- **ROADSIDE MEANS RIGHT NOW — NOT LATER THAT WEEK**
  You have to be able to produce the record at the inspection, in a form the officer can read. Knowing how your specific device transfers data is a five-minute thing to learn and a very bad thing to learn at the scale.

11.7 WHO TO CONTACT

FMCSA ELD REGISTRATION LIST

Purpose	Confirm a device is self-certified and registered before you buy it
Site	eld.fmcsa.dot.gov
Why	Devices are removed from this list when they fail to meet the technical specification, and a removed device stops satisfying the requirement

FMCSA

Phone	1-800-832-5660
Hours	Monday to Friday, 8 AM to 8 PM Eastern
Ask	Whether your specific operation qualifies for a named exception in 395.1

`49 CFR 395.1` `49 CFR 395.2` `49 CFR 395.3` `49 CFR 395.8` `49 CFR 395.11`

11.8 BEFORE YOU MOVE ON

Decided whether you are on the 60-hour or the 70-hour weekly limit, based on how the company runs

Measured your normal runs in air miles, not road miles, against the 150-mile radius

Determined whether you qualify for short-haul every day, or only some days

If short-haul: set up a time record showing report time, hours on duty, and release time daily

If not short-haul: chosen an ELD and confirmed it appears on the FMCSA registration list

Learned how your device transfers data to an officer roadside

Planned the 30-minute interruption around work you already have to do

Read the sleeper berth split before you need it, not during a long night

MAINTENANCE AND INSPECTION RECORDS

49 CFR Part 396. Three separate obligations that people collapse into one and then fail: a maintenance program with records, a daily driver inspection, and an annual inspection by a qualified person. One of them does not apply to you if you run a single truck, and almost nobody knows that.

12.1 THREE DIFFERENT THINGS

396.3
THE MAINTENANCE PROGRAM

You must systematically inspect, repair, and maintain every vehicle under your control, and keep records proving it. This is the ongoing one.

396.11
THE DAILY DRIVER REPORT

A written report at the end of each day's work listing defects found. Read the exception in 12.3 before you build a process around this.

396.17
THE ANNUAL INSPECTION

Every twelve months, against a federal checklist, by a qualified inspector. Documentation must be carried on the vehicle.

WHY AUDITORS GO HERE FIRST

Maintenance records are the easiest thing in a small carrier's file to check and the easiest to have neglected. A truck that looks clean tells an auditor nothing. A file with twelve months of dated repair records tells them you run a real program.

12.2 THE MAINTENANCE FILE

49 CFR 396.3. One file per vehicle, including trailers. This is where a new entrant audit finds most of its problems.

- **IDENTIFICATION OF THE VEHICLE — ENOUGH TO TELL IT APART**
  Company unit number if you use one, make, serial number, year, and tire size. If you do not own the vehicle, the file must show who does.

- **A SCHEDULE — THE NATURE AND DUE DATE OF INSPECTIONS AND MAINTENANCE**
  Written down in advance, not reconstructed afterward. "Every 15,000 miles" is a schedule. "When it needs it" is not.

- **RECORDS OF WHAT WAS ACTUALLY DONE — WITH DATES**
  Inspections, repairs, and maintenance performed, showing their date and nature. Shop invoices work, so long as they are kept and organised by vehicle.

- **YOU MAY DO THE WORK YOURSELF — THE RECORD STILL HAS TO EXIST**
  Nothing requires a shop. An owner-operator who changes their own brakes satisfies 396.3 by writing down what was done and when, and keeping the parts receipt. What is not allowed is work that leaves no trace.

- **WHERE THEY ARE KEPT — MATTERS LEGALLY**
  Records must be retained where the vehicle is either housed or maintained. Not in a glovebox and not at an accountant's office in another state.

> ELECTRONIC IS FINE
>
> These records may be created and kept in electronic format under 49 CFR 390.32. Photographed invoices in dated folders, one per vehicle, satisfy this as well as paper does — and survive a flooded shop better.

HOW LONG YOU KEEP EACH THING

Three different clocks. Mixing them up is a common finding.

RECORD	RETENTION	CITATION
Maintenance and repair records	**1 year, plus 6 months after the vehicle leaves your control**	**396.3(c)**
Driver vehicle inspection report, repair certification, driver review certification	**3 months from the date the report was prepared**	**396.11(a)(4)**
Annual inspection report	**14 months from the date of the report**	**396.21(b)(1)**

The "plus six months" clause catches people. **Selling the truck does not end the obligation.** You keep its records for another six months after it leaves your control, whether it was sold, traded, or scrapped.

12.3 THE DAILY REPORT, AND THE EXCEPTION

49 CFR 396.11. A written report at the completion of each day's work, on each vehicle operated, listing any defect that would affect safety or cause a breakdown.

IF YOU OPERATE ONE COMMERCIAL MOTOR VEHICLE, THIS SECTION DOES NOT APPLY TO YOU

396.11(a)(5) exempts three operations from the driver vehicle inspection report requirement entirely: a private motor carrier of passengers on a non-business basis, a driveaway-towaway operation, and **any motor carrier operating only one commercial motor vehicle.**

A single-truck owner-operator falls in the third category. Vendors sell daily inspection books to people who are not required to keep them.

FOUR WAYS THAT EXCEPTION DISAPPEARS

It is written as **one** commercial motor vehicle, not one driver and not one power unit. The moment you buy a second truck, add a driver in a second vehicle, or run a combination where the trailer counts separately for other purposes, re-read this section against your actual fleet before assuming you are still covered.

And it removes only 396.11. The maintenance program under 396.3, the annual inspection under 396.17, and the pre-trip duty under 396.13 all still apply to a one-truck carrier in full.

IF THE REPORT DOES APPLY TO YOU

- **WRITTEN, AT THE END OF EACH DAY'S WORK**
  Covering each vehicle operated that day, including trailers.
- **IT LISTS DEFECTS, NOT EVERYTHING CHECKED**
  Any defect or deficiency that would affect safe operation or result in a breakdown.
- **THE CARRIER CERTIFIES THE REPAIR**
  Before the vehicle is dispatched again, defects affecting safety must be repaired and the repair certified.
- **THE NEXT DRIVER CERTIFIES THE REVIEW**
  A signature showing the previous report was reviewed and the work done.

THE PRE-TRIP DUTY ALWAYS APPLIES

- **396.13, BEFORE DRIVING**
  The driver must be satisfied the vehicle is in safe operating condition.
- **REVIEW THE LAST REPORT, IF THERE WAS ONE**
  And confirm the required repairs were made.
- **CARRY THE ANNUAL INSPECTION DOCUMENTATION**
  On the vehicle, where it can be produced roadside.
- **THIS IS A DUTY, NOT A FORM**
  Being exempt from the written report does not excuse driving something unsafe.

12.4 THE ANNUAL INSPECTION

49 CFR 396.17. Commonly called the DOT annual, though the regulation calls it the periodic inspection.

EVERY UNIT SEPARATELY — NOT THE COMBINATION

The regulation is explicit: for a tractor, semitrailer, and full trailer combination, the tractor, the semitrailer, and the full trailer each get inspected, including the converter dolly if there is one. Three units, three inspections, three certificates.

AGAINST APPENDIX A — A FEDERAL CHECKLIST, NOT THE SHOP'S OWN

Every component identified in Appendix A to Part 396 must have passed within the preceding 12 months. A shop that does its own "safety check" has not performed a periodic inspection.

- **DOCUMENTATION ON THE VEHICLE — REPORT OR DECAL**
  Either the inspection report itself, or a sticker or decal carrying the required information. If it is not on the vehicle, you cannot show it roadside.

- **BY A QUALIFIED INSPECTOR — AND YOU KEEP PROOF OF THAT TOO**
  The inspector's qualifications are defined federally. Ask your shop for evidence they meet them, and keep it. Brake work has its own separate qualification standard.

> FOURTEEN MONTHS, AND THE SHOP'S COPY IS STILL YOUR PROBLEM
>
> 396.21(b)(1) requires the original or a copy of the inspection report to be retained for **fourteen months** from the date of the report, kept where the vehicle is housed or maintained, and available on demand to a Federal, State, or local official. Fourteen rather than twelve is deliberate: it means you always hold the current report and the one before it.
>
> And 396.21(b)(3) closes the obvious escape. If you did not perform the last annual inspection yourself, **you are still responsible for obtaining the report on demand.** "The shop has it" is not an answer at a roadside stop.

12.5 ROADSIDE AND OUT OF SERVICE

- **THE INSPECTION REPORT COMES BACK TO YOU — 396.9**
  A roadside inspection generates a report. The carrier must review it, correct anything noted, and certify the corrections. That certification goes back to the issuing agency, and it is a deadline you cannot ignore.

- **OUT OF SERVICE MEANS STOPPED — NOT "DRIVE CAREFULLY TO THE SHOP"**
  A vehicle declared out of service may not be operated until the defect is corrected. Moving it anyway is a violation with weight far beyond the original defect.

- **ROADSIDE RESULTS FEED YOUR PUBLIC SCORE — PERMANENTLY**
  Inspection outcomes land in the federal safety systems that brokers and insurers look at. A pattern of maintenance violations costs you loads and premium long after the ticket is paid.

> THE CHEAPEST COMPLIANCE YOU WILL EVER BUY
>
> Most roadside maintenance violations are lights, tires, and brakes. A ten-minute walk-around before each trip prevents the majority of them, costs nothing, and satisfies your pre-trip duty at the same time.

12.6 WHO TO CONTACT

YOUR INSPECTION SHOP

Ask	"Do you perform the federal periodic inspection against Appendix A to Part 396?"
Ask	"Can you give me documentation of your inspector's qualifications for my file?"
Ask	"Will I get a report, a decal, or both?"

FEDERAL MOTOR CARRIER SAFETY ADMINISTRATION

Phone	1-800-832-5660
Hours	Monday to Friday, 8 AM to 8 PM Eastern
Ask	Whether the one-vehicle exception in 396.11(a)(5) applies to your specific operation

49 CFR 390.32 | 49 CFR 396.3 | 49 CFR 396.9 | 49 CFR 396.11 | 49 CFR 396.13 | 49 CFR 396.17 | 49 CFR 396.21 | Appendix A to Part 396

12.7 BEFORE YOU MOVE ON

Opened one maintenance file per vehicle, trailers included

Written a maintenance schedule in advance, with intervals and due dates

Confirmed whether the one-vehicle exception in 396.11(a)(5) applies to you

Set a reminder for each vehicle's annual inspection twelve months out

Confirmed the annual inspection documentation is physically on each vehicle

Asked your shop for its inspector qualification documentation

Decided where records live — at the place the vehicle is housed or maintained

Diarised the six-month tail on records for any vehicle you sell or scrap

GETTING LOADS AND GETTING PAID

Everything before this part was permission to operate. This part is the business. Most new carriers fail here rather than at compliance — not because they cannot find freight, but because they haul it for someone who does not pay, and they had no idea they were allowed to check first.

13.1 WHO IS WHO

Four roles, and money moves between them in a fixed order. Knowing which one you are talking to tells you what protection you have.

SHIPPER

OWNS THE FREIGHT

Wants it moved. Pays either the broker or, on a direct relationship, you. A direct shipper relationship pays best and takes longest to earn.

BROKER

ARRANGES THE TRANSPORT

Federally defined as a person who, for compensation, arranges or offers to arrange transportation of property by an authorized motor carrier. Registered and bonded. Where most new carriers get their freight.

CARRIER

YOU

Moves the freight under your own authority and insurance. You take the operational risk and, until you are paid, the credit risk too.

FACTOR

BUYS YOUR INVOICE

Optional and unregulated. Pays you quickly at a discount and collects from the broker later. A cash-flow tool, not a safety net.

A BROKER MAY NOT PRETEND TO BE A CARRIER

49 CFR 371.7 prohibits a broker from performing brokerage service under any name other than the one its registration is issued in, from representing its operations to be those of a carrier, directly or indirectly, and requires advertising to show broker status. If you cannot tell from someone's website whether they are a broker or a carrier, that is itself a finding.

13.2 CHECK THE BROKER BEFORE YOU HAUL

Ten minutes, before you accept the load, not after the invoice goes unpaid. All of it is free and public.

1 CONFIRM THEY HOLD ACTIVE BROKER AUTHORITY

Look them up on FMCSA's public systems by name or registration number. Authority that is inactive, revoked, or in the wrong name means you have no bond behind you.

2 CONFIRM THE BOND OR TRUST FUND IS ON FILE

Under 49 CFR 387.307, a broker must have a surety bond or trust fund of $75,000 in effect, filed on Form BMC-84 for a bond or BMC-85 for a trust fund. FMCSA will not register a broker until it is in effect, and registration stays effective only while it remains so.

3 CHECK THE NAME MATCHES EXACTLY

The name on the rate confirmation, the name on the authority, and the name on the bond must be the same entity. A mismatch is the single most common way a carrier ends up with no one to claim against.

4 ASK OTHER CARRIERS HOW THEY PAY

Days to pay, and whether they pay at all, is knowledge the industry shares freely. Ask before the first load, not after.

$75,000 IS THE CEILING, NOT YOUR GUARANTEE

The bond is the maximum the surety will pay across all valid claims during the bond term. If a broker fails owing twenty carriers, everyone is claiming against the same $75,000. Being early and being documented is what determines whether you see any of it.

RECENT CHANGE WORTH KNOWING

The financial responsibility rules in Part 387 were updated effective January 16, 2026. The $75,000 figure held, but the surrounding rules tightened, including requirements around what a trust fund may hold and notification when a broker's security drops below the floor. If you are reading older commentary, check it against the current section.

13.3 THE RATE CONFIRMATION

This is your contract for the load. Read it before you roll, because everything you argue about later will be decided by what it says.

WHAT MUST BE ON IT

- **THE EXACT LEGAL NAME OF THE BROKER**
  Matching their authority and bond.
- **THE RATE, AND WHAT IT INCLUDES**
  Line haul, fuel surcharge, and any accessorial separately stated.
- **DETENTION AND LAYOVER TERMS**
  When it starts, what it pays, and what proof they will demand.
- **PAYMENT TERMS IN DAYS**
  And what triggers the clock — delivery, or receipt of paperwork.
- **PICKUP AND DELIVERY WINDOWS**
  With appointment numbers and site contacts.

WHAT TO LOOK FOR AND QUESTION

- **WAIVERS OF YOUR RIGHT TO BROKER RECORDS**
  See 13.4. These are common and they are giving away something the regulation gives you.
- **FINES AND PENALTIES FOR LATE DELIVERY**
  Some deduct amounts far larger than the load pays.
- **PAPERWORK DEADLINES**
  A clause voiding payment if documents arrive late is enforceable against you.
- **WHO IS LIABLE FOR THE FREIGHT**
  And whether it exceeds the cargo coverage you actually carry.
- **QUICK PAY DISCOUNTS**
  Convenient, but calculate the annual cost before making it a habit.

SIGNED IS SIGNED

A rate confirmation you signed without reading binds you the same as one you negotiated. There is no federal protection for a carrier who agreed to bad terms. The leverage is entirely before you sign, and it disappears completely the moment you do.

13.4 YOUR RIGHT TO SEE THE BROKER'S RECORDS

49 CFR 371.3. Almost no small carrier knows this exists, and it is one of the few places the regulations put power in your hands rather than obligations on your shoulders.

WHAT THE BROKER MUST RECORD FOR EVERY TRANSACTION

ITEM	DETAIL REQUIRED
Consignor	**Name and address**
Originating carrier	**Name, address, and registration number**
Paperwork	**The bill of lading or freight bill number**
Broker's compensation	**The amount received for the brokerage service, and the name of the payer**
Other services	**Description of any non-brokerage service, the compensation for it, and the**
Freight charges	**The amount collected by the broker, and the date it was paid to the carrie**

Brokers must keep these records for **three years**, and 371.3(c) states that **each party to a brokered transaction has the right to review the record of the transaction.** You are a party. That means you may ask to see what the broker was paid on a load you hauled.

WHY YOU HAVE PROBABLY NEVER SEEN ONE

Broker-carrier contracts frequently contain clauses waiving this right, and signing one is how most carriers give it up without noticing. FMCSA has an open rulemaking on broker transparency that would tighten this — including a proposed 48-hour deadline to produce records on request — but as of now the right exists in its current form and the waivers are widespread.

Read every contract for a transparency waiver. You may not be able to strike it and still get the load. But you should know when you are trading it away rather than discover later that you did.

13.5 GETTING PAID, AND FACTORING

Your invoice is worth nothing until the paperwork behind it is complete. Most payment disputes are document disputes wearing a disguise.

- **SIGNED PROOF OF DELIVERY — THE DOCUMENT EVERYTHING DEPENDS ON**
  Clean, legible, signed, and dated. Photograph it before it leaves your hand. A lost delivery receipt is an unpaid load.
- **SUBMIT THE SAME DAY — NOT AT THE END OF THE WEEK**
  Payment terms usually run from receipt of documents, not from delivery. Every day you sit on paperwork is a day added to your own wait.
- **ACCESSORIALS NEED PROOF AT THE TIME — NOT FROM MEMORY**
  Detention, layover, and lumper charges are paid on documentation. Get times signed at the dock, keep receipts, and submit them with the invoice rather than arguing afterward.
- **KNOW YOUR OWN DAYS-TO-PAY — AS A NUMBER**
  Track how long each broker actually takes against what they promised. That figure decides who you work with next season, and it is the only honest measure of a customer.

WHAT FACTORING DOES

- **BUYS THE INVOICE AT A DISCOUNT**
  You get most of the money in a day or two instead of waiting the term.
- **RECOURSE OR NON-RECOURSE**
  Recourse means you repay the factor if the broker never pays. Non-recourse shifts some of that risk and costs more.

WHAT TO ASK BEFORE SIGNING

- **THE ALL-IN RATE, INCLUDING EVERY FEE**
  Wire fees, minimums, and monthly charges, not just the headline percentage.
- **CONTRACT LENGTH AND HOW YOU EXIT**
  Notice periods and termination penalties. Long lock-ins are the usual trap.
- **MINIMUM VOLUME COMMITMENTS**

- **THEY WILL VET YOUR BROKERS**
  A factor refusing to buy a broker's invoice is telling you something free and valuable.

And what happens in a slow month when you miss them.

- **WHETHER IT IS ALL INVOICES OR YOUR CHOICE**
  Being forced to factor every load costs far more than factoring the slow-paying ones.

> FACTORING IS A PRICE, NOT A RESCUE
>
> It is unregulated, so terms vary enormously and nobody publishes a standard rate. It solves a timing problem, and only a timing problem. If the underlying issue is that a rate does not cover your cost per mile, factoring converts a slow loss into a fast one.

13.6 WHEN YOU DO NOT GET PAID

ACT EARLY — THE BOND IS SHARED AND FINITE
A failing broker's $75,000 is claimed against by every carrier they owe. Waiting politely for three months while others file is how carriers end up recovering nothing.

ASSEMBLE THE FILE FIRST — A CLAIM IS DOCUMENTS
Rate confirmation, bill of lading, signed proof of delivery, your invoice, and a record of every attempt to collect. A claim without these does not survive investigation.

CLAIM AGAINST THE SURETY — NAMED ON THE FILING
The bond names the surety company. That is who investigates and pays valid claims, up to the bond limit.

WATCH THE AUTHORITY STATUS — IT IS AN EARLY WARNING
If a broker's security lapses, their registration cannot stay effective. A carrier watching authority status often sees trouble before the missed payment.

> DOUBLE BROKERING
>
> If a load you were given is passed to another carrier without your knowledge, or you are asked to haul a load someone else was assigned, the payment chain becomes unclear and the bond may not reach you. Verify that the entity on your rate confirmation is the one that holds the authority for the load. If a rate seems far above market for the lane, treat that as a question rather than a windfall.

13.7 WHO TO CONTACT

BEFORE ACCEPTING A LOAD FROM A NEW BROKER

Verify	Active broker authority, in the exact name on the rate confirmation
Verify	A BMC-84 bond or BMC-85 trust fund on file
Ask them	"What are your payment terms, and does the clock start at delivery or at receipt of paperwork?"
Ask them	"Does your contract contain a waiver of my right to review transaction records?"

FEDERAL MOTOR CARRIER SAFETY ADMINISTRATION

Phone	1-800-832-5660
Hours	Monday to Friday, 8 AM to 8 PM Eastern
Ask	How to confirm a broker's current registration and financial security status

49 CFR 371.2 · 49 CFR 371.3 · 49 CFR 371.7 · 49 CFR 387.307

13.8 BEFORE YOU MOVE ON

- Built a one-page check you run on every new broker before accepting a load
- Confirmed you know your own cost per mile, so you can tell a good rate from a busy one
- Read a full broker-carrier contract start to finish at least once, slowly
- Located the transparency waiver clause in that contract, if it has one

Set a rule for submitting paperwork the same day as delivery

Decided whether you are factoring, and if so priced the all-in cost including fees

Started tracking actual days-to-pay per broker

Assembled the document set you would need for a bond claim, before you need it

ADDING YOUR FIRST DRIVER

The day you put someone else behind the wheel, you stop being an owner-operator and become an employer of a safety-sensitive worker. Several exemptions you have been relying on disappear at once, and the liability for that person's driving is yours whether you knew the rules or not.

14.1 TWO WAYS TO DO IT

Decide this before you advertise, because the paperwork, the tax treatment, and the federal rules that attach all follow from it.

HIRE A DRIVER INTO YOUR TRUCK

- **YOU OWN THE EQUIPMENT**
  They drive it. Simplest structure and the one the federal rules assume by default.
- **EMPLOYMENT OBLIGATIONS ATTACH**
  Payroll, withholding, and in most states workers' compensation. These are state and IRS questions, not FMCSA ones.
- **FULL DRIVER QUALIFICATION FILE**
  Everything in Part Ten, on them, before they drive.

LEASE ON AN OWNER-OPERATOR

- **THEY OWN THE TRUCK, YOU HOLD THE AUTHORITY**
  This is the "driver taking a percentage" arrangement, and it triggers a separate body of federal rules.
- **A WRITTEN LEASE IS MANDATORY**
  Section 14.4. Not optional, not a handshake, and its required contents are prescribed.
- **THEY ARE STILL YOUR DRIVER FEDERALLY**
  The qualification file, the testing program, and the hours of service all still land on you.

"INDEPENDENT CONTRACTOR" DOES NOT MOVE THE SAFETY OBLIGATIONS

Whatever you agree about taxes, and however the arrangement is labelled, a driver operating under your authority is your driver for the purposes of the federal safety regulations. You hold the qualification file. You run the testing programme. Their hours are your violation. Calling someone a contractor changes who withholds tax; it does not change who FMCSA audits.

Worker classification itself is an IRS and state labour question with real penalties attached. Get that answered by someone qualified in your state before you structure the deal.

14.2 BEFORE THEY DRIVE, IN ORDER

This sequence exists because several steps have waiting periods. Started late, a driver sits idle on your payroll.

1 APPLICATION, AND NOTICE BEFORE YOU CONTACT ANYONE

You must inform the applicant, before the application is submitted, that previous employers will be contacted, and give written notice of their due process rights. Part Ten covers the detail.

2 MOTOR VEHICLE RECORD, AND THE SAFETY PERFORMANCE HISTORY

Their driving record from every state that licensed them in the last three years, and enquiries to every regulated employer over the same period. Previous employers get 30 days to respond, so start immediately.

3 CLEARINGHOUSE QUERY, FULL PRE-EMPLOYMENT

Before they perform any safety-sensitive function. A prohibited status means they cannot drive, full stop, and finding that out afterward is far worse than finding it out now.

4 PRE-EMPLOYMENT DRUG TEST, WITH A NEGATIVE RESULT IN HAND

A test that has been sent is not a test that has come back. They do not drive on a pending result.

5 MEDICAL CERTIFICATE, AND ROAD TEST OR ACCEPTED EQUIVALENT

Current certification from an examiner on the National Registry, and either your own road test or a documented equivalent you have accepted.

6 OPEN BOTH FILES

The qualification file, and the separate driver investigation history file that must be kept in a secure location with controlled access. Two files, not one folder.

BUILD THE PACKET ONCE

Everything above is the same for your second driver and your tenth. Assemble the application form, the notice language, the enquiry letter, and the file checklist once, properly, and hiring becomes a morning's work instead of a fortnight of improvisation.

14.3 YOUR TESTING PROGRAMME GROWS UP

- **THE RANDOM POOL IS NOW A REAL POOL — WITH MORE THAN YOU IN IT**
  Random selection rates apply to the number of driver positions, and selections must be genuinely random and spread across the year. A one-person pool was always awkward; a two-person pool is where carriers start getting the mechanics wrong.

- **SUPERVISOR TRAINING BECOMES RELEVANT — BECAUSE NOW THERE IS A SUPERVISOR**
  Reasonable suspicion testing depends on someone trained to recognise the signs making the determination. If that person is you, you need the training.

- **POST-ACCIDENT TESTING HAS TO BE EXECUTABLE — AT 2 AM, THREE STATES AWAY**
  Know in advance where a driver goes for a test on the road and how quickly. Work it out now, not during the phone call.

- **CLEARINGHOUSE QUERIES CONTINUE — ONCE EVERY ROLLING 12 MONTHS**
  Per driver, for as long as they work for you. Diarise it against their hire date.

- **A SERVICE PROVIDER DOES NOT TAKE THE LIABILITY — ONLY THE WORK**
  Delegating your programme to a consortium or third-party administrator is sensible. It does not delegate responsibility, and an auditor will hold you to the outcome.

14.4 IF THEY OWN THE TRUCK: THE WRITTEN LEASE

49 CFR Part 376, commonly called the truth-in-leasing rules. They apply whenever you perform authorised transportation in equipment you do not own.

- **A WRITTEN LEASE IS REQUIRED — 376.11(A)**
  Granting use of the equipment and meeting the requirements of 376.12. Absent an exemption, there is no version of this arrangement that is legal on a handshake.

- **BETWEEN THE CARRIER AND THE OWNER — SIGNED BY BOTH**
  376.12(a). The parties, and their authorised representatives, sign it.

- **DURATION MUST BE SPECIFIC — 376.12(B)**
  The lease specifies the time and date, or the circumstances, on which it begins and ends.

- **THREE COPIES EXIST — AND ONE LIVES ON THE TRUCK**
  376.12(l). You keep a copy, the owner keeps a copy, and a copy stays on the equipment for the period of the lease unless the alternative statement under 376.11(c)(2) is carried instead.

- **ESCROW COMES BACK — WITHIN 45 DAYS OF TERMINATION AT THE OUTSIDE**
  If you hold an escrow fund, the lease must specify that in no event is it returned later than 45 days from the date of termination.

376.12(F) — AND WHAT THE CARRIER MAY NOT DO

The lease must specify that payment to the lessor is made **within 15 days** after submission of the necessary delivery documents for a trip. The paperwork you may require before paying is limited to logs required by the Department of Transportation and the documents you need to secure payment from the shipper.

Three things the regulation forbids outright: you may require additional documents but **not as a prerequisite to payment**; payment may **not be made contingent on a bill of lading to which no exceptions have been taken**; and you may **not set time limits** for the lessor to submit their delivery documents.

IF YOU ARE PAYING A PERCENTAGE, TWO MORE CLAUSES BIND YOU

376.12(g). Where the lessor's revenue is a percentage of the gross revenue for a shipment, the lease must specify that you give them a copy of the freight bill or other freight documentation, before or at the time of settlement. They get to see the number their percentage is calculated from.

376.12(h). The lease must clearly specify every item you may initially pay for but ultimately deduct from their compensation, together with how each amount is computed — and the lessor must be afforded copies of the documents needed to check that the charge is valid. Chargebacks that appear on a settlement without being named in the lease are not permitted.

WHY THESE RULES EXIST

The leasing regulations were written because carriers were taking percentages, deducting charges, and holding money from owner-operators with no obligation to explain any of it. Every required provision is there to make the arrangement legible to the person driving. If you are structuring a deal you would rather the other party not read carefully, the regulation is aimed at you.

14.5 WHAT ELSE CHANGES ON DAY ONE

Easy to miss, because none of it announces itself.

OBLIGATIONS THAT APPEAR OR CHANGE

WHAT	WHAT CHANGES
Daily inspection report	**The one-vehicle exception can be lost the moment you run a second commercial**
Unified Carrier Registration	**The fee bracket is set by vehicle count — adding a truck can move you up a b**
Insurance	**A named driver changes underwriting; an unlisted driver can mean an unpaid c**
MCS-150	**Your driver and vehicle counts feed your registration and your safety measur**

WHAT	WHAT CHANGES
Hours of service	**You are now responsible for someone else's clock, and their violation is you**
Form 2290	**A second heavy vehicle is a second tax liability, keyed to its month of firs**

Every row is something you already read about when it applied to one truck and one driver. **The mistake is assuming the answer stays the same at two.** Re-read each of those parts against your new fleet before the second truck moves.

TELL YOUR INSURER BEFORE, NOT AFTER

Of everything on that list, insurance is the one that can end the business rather than fine it. A driver who is not disclosed and who has an at-fault accident is the scenario where a claim gets denied and the liability is entirely yours. Make the call before their first shift.

14.6 WHO TO CONTACT

YOUR INSURANCE AGENT

Tell them	The driver's name, licence, and experience, before the first shift
Ask	"What does adding this driver do to my premium, and are there experience conditions?"
Ask	"Does my policy cover a leased owner-operator's equipment, and on what terms?"

FEDERAL MOTOR CARRIER SAFETY ADMINISTRATION

Phone	1-800-832-5660
Hours	Monday to Friday, 8 AM to 8 PM Eastern
Ask	Whether your lease arrangement falls under Part 376 or one of its subpart C exemptions

`49 CFR 376.11` `49 CFR 376.12` `49 CFR Part 382` `49 CFR Part 391` `49 CFR Part 395`

14.7 BEFORE YOU MOVE ON

Decided whether you are hiring a driver or leasing on an owner-operator, and why

Got worker classification answered by someone qualified in your state

Built the hiring packet once: application, notices, enquiry letter, file checklist

Confirmed a negative pre-employment drug test and a clear Clearinghouse query before any driving

Opened both files — qualification, and the separate secured investigation history file

If leasing equipment: drafted a written lease meeting Part 376, with a copy on the truck

Set settlement terms that pay within 15 days and name every chargeback in the lease

Called your insurer and had the driver added

Re-checked your UCR bracket, MCS-150 counts, and whether the one-vehicle inspection exception still applies

THE NEW ENTRANT SAFETY AUDIT

Every carrier that activates a United States Department of Transportation (USDOT) number enters an 18-month monitoring period, and an audit happens inside it. This is where the previous fourteen parts are checked. Read this one first, not last — everything it asks for is something you should have been building since day one.

15.1 WHAT IT ACTUALLY IS

49 CFR Part 385, Subpart D. A review of your records, not your driving. Most carriers who fail are not dangerous — they are disorganised.

DOCUMENTS

NOT A ROAD TEST

An auditor asks for files. If the file does not exist, the fact that you did the thing correctly is not evidence that you did it.

PASS OR FAIL

NO MIDDLE GRADE

You either demonstrated basic safety management controls or you did not. There is no partial credit and no discretionary allowance for being new.

18 MONTHS

THE MONITORING WINDOW

The audit occurs within it. Plan on being ready far earlier — carriers commonly report being contacted within the first year.

TWO SEPARATE WAYS TO FAIL

Under 385.321(a) you fail either by lacking the basic safety management controls described in Appendix A to Part 385, **or** by violating any one of the sixteen regulations listed in 385.321(b). They are independent. A carrier with tidy files still fails on a single automatic violation, and a carrier with none of those violations still fails if the controls are not there.

REFUSING IS NOT AN OPTION

385.337 addresses a new entrant refusing to permit the audit, and 385.335 allows a full compliance review in place of one. Neither route improves your position. Cooperating with a prepared file is the only version of this that ends well.

15.2 THE SIXTEEN AUTOMATIC FAILURES

49 CFR 385.321(b), verbatim from the regulation. Any one of these fails the audit regardless of everything else you have done.

VIOLATIONS THAT AUTOMATICALLY FAIL THE AUDIT

REGULATION	THE VIOLATION
382.115(a) / (b)	**Failing to implement an alcohol and controlled substances testing program**
382.201	**Using a driver known to have an alcohol content of 0.04 or greater for a saf**
382.211	**Using a driver who has refused a required test**
382.215	**Using a driver known to have tested positive for a controlled substance**
382.305	**Failing to implement a random testing program**
383.3(a) / 383.23(a)	**Knowingly using a driver without a valid commercial driver's license**
383.37(b)	**Allowing someone to drive on a permit or licence disqualified by a State, or**
383.51(a)	**Allowing a disqualified driver to drive**
387.7(a)	**Operating without the required minimum financial responsibility coverage**

REGULATION	THE VIOLATION
387.31(a)	**The same, for a passenger-carrying vehicle**
391.15(a)	**Knowingly using a disqualified driver**
391.11(b)(4)	**Knowingly using a physically unqualified driver**
395.8(a)	**Failing to require a driver to make a record of duty status**
396.9(c)(2)	**Operating a vehicle declared out of service before repairs are made**
396.11(a)(3)	**Failing to correct out-of-service defects listed by a driver before the vehi**
396.17(a)	**Using a vehicle that has not been periodically inspected**

Fourteen of the sixteen are single occurrence. One instance, once, and the audit is failed. Only two carry a threshold: the duty status records under 395.8(a) and the periodic inspection under 396.17(a) require 51% or more of the examined records to be in violation. That distinction is rarely published, and it is worth knowing which fourteen leave you no margin at all.

READ THE LIST AS A BUILD ORDER

Five of the sixteen are the drug and alcohol programme. Three are licensing and disqualification. Two are insurance. Three are maintenance and inspection. One is hours of service. If you are wondering where to spend your preparation time, the regulation has already told you.

15.3 WHAT THE AUDITOR ASKS FOR

Everything below has a part of this guide behind it. This section is the index.

DRIVER QUALIFICATION FILES — PART TEN

One per driver including yourself, plus the separate driver investigation history file kept securely. The annual review note is the item most often missing.

DRUG AND ALCOHOL PROGRAMME — PART NINE

Written policy, pre-employment negatives, the random selection pool and its records, Clearinghouse queries. Five of the sixteen automatic failures live here.

- **HOURS OF SERVICE RECORDS — PART ELEVEN**
  Logs or time records for the review period, and evidence you checked them rather than merely collected them.
- **VEHICLE MAINTENANCE FILES — PART TWELVE**
  One per vehicle, the schedule, the repair records, and the current annual inspection for every unit.
- **PROOF OF INSURANCE — PART SIX**
  At the correct federal minimum, in force continuously, filed with the agency.
- **ACCIDENT REGISTER — AND IT MAY BE EMPTY**
  An empty register that exists is a pass. No register at all is a finding, because it shows no control was in place to record one.

> THE PRINCIPLE BEHIND ALL OF IT
>
> The audit asks whether you exercised control over each area throughout the review period — not whether the paperwork looked right on the day. Records created the week before an audit tend to look exactly like records created the week before an audit.

15.4 IF YOU FAIL

Failure is not immediately fatal. It starts a clock, and the clock is short.

1 YOU RECEIVE A NOTICE

Stating that your new entrant registration will be revoked, and identifying what was found.

2 YOU SUBMIT CORRECTIVE ACTION

Evidence that you have actually fixed the deficiencies — not a promise to fix them. 385.319(c) sets the periods, and 385.323 allows FMCSA to extend the 60-day period by up to a further 60 days where it determines you are making a good faith effort, and the 45-day period by up to 10 days where evidence of corrective action has been submitted.

3 FMCSA DECIDES

385.325 covers the outcomes. Accepted, and you continue under the new entrant programme. Not accepted, and revocation and an out-of-service order follow.

4 REVIEW AND RE-APPLICATION EXIST

385.327 provides for administrative review and 385.329 for re-application. Both are slower and more expensive than passing the first time.

OPERATING UNDER AN OUT-OF-SERVICE ORDER

385.331 makes a new entrant that operates a commercial motor vehicle in violation of an out-of-service order subject to statutory penalties for each offence, adjusted for inflation. This is the point at which a paperwork problem becomes a financial catastrophe. If you are ordered out of service, stop.

15.5 COMING OUT THE OTHER SIDE

385.333. What "passing" actually buys you.

- **THE DESIGNATION IS REMOVED — IN WRITING**
  If a safety audit has been performed within the 18-month period and you are not under an out-of-service order or a notice to remedy your safety management controls, FMCSA removes the new entrant designation and notifies you that your registration has become permanent.
- **YOU ARE THEN TREATED LIKE EVERYONE ELSE — WHICH IS THE POINT**
  Thereafter FMCSA evaluates you on the same basis as any other carrier. No special scrutiny, and no special allowance either.
- **REACHING 18 MONTHS UNDER A CORRECTION ORDER DOES NOT END IT — THE ORDER SURVIVES**
  A new entrant that reaches the conclusion of the period while under an order to correct is still under that order. The calendar does not rescue you.
- **A COMPLIANCE REVIEW CAN STILL FIND YOU "UNFIT" — AND REVOKE**
  Being past the audit does not mean the file stops mattering. It means the file now matters permanently.

15.6 WHO TO CONTACT

FEDERAL MOTOR CARRIER SAFETY ADMINISTRATION

Phone	1-800-832-5660
Hours	Monday to Friday, 8 AM to 8 PM Eastern
Ask	Which office covers your state for new entrant audits, and how you will be contacted

READ THE RULES YOURSELF

The list of sixteen	49 CFR 385.321(b) at ecfr.gov
The evaluation criteria	Appendix A to Part 385
Why	These are the actual standards you will be measured against, free, in about twenty minutes of reading

49 CFR 385.319 · 49 CFR 385.321 · 49 CFR 385.323 · 49 CFR 385.325 · 49 CFR 385.327 · 49 CFR 385.331 · 49 CFR 385.333 · Appendix A to Part 385

15.7 THE WHOLE THING, IN ONE LIST

Entity formed, Employer Identification Number issued, names matching everywhere

USDOT number and operating authority active, in the entity's legal name

Process agents designated and the filing accepted

Insurance in force at the correct federal minimum and filed by your insurer

Unified Carrier Registration paid for the current year, in the correct bracket

Apportioned plates and fuel tax licence if your vehicle qualifies

Form 2290 filed and the stamped Schedule 1 in hand

Drug and alcohol programme running, with a policy, a pool, and Clearinghouse queries

Driver qualification file complete on every driver, including yourself

The separate driver investigation history file, kept securely

Hours of service records being kept and reviewed, or short-haul time records if exempt

One maintenance file per vehicle, with a written schedule and dated records

Current annual inspection on every unit, documentation carried on the vehicle

An accident register, even if it is empty

A written lease meeting Part 376 for any equipment you do not own

> YOU NOW KNOW MORE THAN MOST PEOPLE WHO SELL THIS
>
> Everything in this guide is public, free, and written down. It is not hidden — it is just scattered across fifteen parts of federal regulation in language nobody writes for beginners. The people who charge hundreds of dollars to "handle it for you" are charging for the reading, not the work.
>
> You can look up every rule cited here yourself at ecfr.gov. If someone tells you something that contradicts it, the regulation wins. That is the whole advantage, and now it is yours.